

THE STAMP ACT, 1899

(II of 1899)

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SCHEDULE I
(Stamp-Duty on Instruments)

SCHEDULE II
(Repealed)

TEXT

¹THE STAMP ACT, 1899

(II of 1899)

[27 January, 1899]

An
Act

to consolidate and amend the law relating to Stamps.

WHEREAS it is expedient to consolidate and amend the law relating to Stamps; It is hereby enacted as follows:—

CHAPTER I Preliminary

1. Short title, extent and commencement.— (1) This Act may be called the ²[*] Stamp Act, 1899.

³[(2) It extends to the whole of ⁴[the Punjab].]

¹This Act was published in the Gazette of India, dated: 28 January 1899, pp. 3-36. For Statement of Objects and Reasons, see Gazette of India, 1897, Part V, p. 175, for Report of the Select Committee, see *ibid.*, 1898, Part V, p. 231; and, for Proceedings in Council, see *ibid.*, 1898, Part VI, pp. 10 and 278; and *ibid.*, 1899, Part VI, p. 5.

The Act was amended in its application to:—

(1) the Punjab and the N.W.F.P (now KPK) by the Indian Stamp (Punjab Amendment) Act, 1922 (Punjab VIII of 1922), the Indian Stamp (Punjab Amendment) Act, 1924 (Punjab I of 1924) and the Indian Stamp (N.W.F.P. Amendment) Act, 1948 (N.W.F.P. Act XV of 1948); see also the Punjab Stamp (Amendment) Act, 1935 (Punjab I of 1935), Punjab Act XIV of 1948, section 2 and Act XI of 1949, section 2, applying only to the Punjab; (2) Sind, by the Indian Stamp (Sind Amendment) Act, 1938 (Sind XII of 1938); (3) Capital of the Federation, by the Finance Act, 1952 (V of 1952); and (4) the Province of West Pakistan (except the Capital of the Federation) by the West Pakistan (Adaptation and Repeal of Laws) Act, 1957 (XVI of 1957), section 3(3) and 3rd Schedule (with effect from 14 October 1955).

It was applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P (now KPK), subject to certain modifications, and extended to the Excluded Area of Upper Tanawal (N.W.F.P) other than Phulera with effect from such date and subject to such modifications as may be notified, see N.W.F.P. (Upper Tanawal Excluded Area) Laws Regulation, 1950.

This Act and all rules, notifications, declaration and orders made under it which were in force immediately before the first day of April, 1952, were extended to and brought into force in the State of Bahawalpur, see the Bahawalpur (Extension of Laws) Order, 1952 (G.G.O. II of 1952).

It was also extended to Khairpur State, see the Khairpur (Federal Laws) (Second Extension) Order, 1953 (G.G.O. XV of 1953).

It was extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G.G.O. III of 1950); applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Part I, p. 1499.

It was also extended to the Baluchistan States Union, see G.G.O. XVIII of 1953.

This Act was amended in its applications to the Province of West Pakistan by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959) (with effect from the 15 August 1959).

It was further amended in its application to the Province of West Pakistan by the Stamp (West Pakistan Amendment) Act, 1964 (II of 1964), published in the Gazette of West Pakistan (Extraordinary), dated: 7 March 1964, pp. 711-732, s. 1.

²The word "Indian" was omitted by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with the Schedule.

³Substituted by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. It was earlier substituted by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with the Schedule.

⁴Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.3

(3) It shall come into force on the first day of July, 1899.

2. Definitions.— In this Act, unless there is something repugnant in the subject or context—

(1) “banker” includes a bank and any person acting as a banker:

(2) “bill of exchange” means a bill of exchange as defined by the Negotiable Instruments Act, 1881¹, and includes also a hundi, and any other document entitling or purporting to entitle any person, whether named therein or not, to payment by any other person of, or to draw upon any other person for, any sum of money:

(3) “bill of exchange payable on demand” includes—

(a) an order for the payment of any sum of money by a bill of exchange or promissory note, or for the delivery of any bill of exchange or promissory note in satisfaction of any sum of money, or for the payment of any sum of money out of any particular fund which may or may not be available, or upon any condition or contingency which may or may not be performed or happen;

(b) an order for the payment of any sum of money weekly, monthly, or at any other stated periods; and

(c) a letter of credit, that is to say, any instrument by which one person authorizes another to give credit to the person in whose favour it is drawn:

(4) “bill of lading” includes a “through bill of lading,” but does not include a mate’s receipt:

²[(4A) Board of Revenue” means the Board of Revenue established under the Punjab Board of Revenue Act, 1957 (*XI of 1957*);]

(5) “bond” includes—

(a) any instrument whereby a person obliges himself to pay money to another, on condition that the obligation shall be void if a specified act is performed, or is not performed, as the case may be;

(b) any instrument attested by a witness and not payable to order or bearer whereby a person obliges himself to pay money to another; and

(c) any instrument so attested, whereby a person obliges himself to deliver grain or other agricultural produce to another:

(6) “chargeable” means, as applied to an instrument executed or first executed after the commencement of this Act, chargeable under this Act, and, as applied to any other instruments chargeable under the law in force in ³[Pakistan] when such instrument was executed or, where several persons executed the instrument at different times, first executed:

(7) “cheque” means a bill of exchange drawn on a specified banker and not expressed to be payable otherwise than on demand:

¹XXVI of 1881.

²Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.4

³Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

¹[(8) “*Chief Controlling Revenue-authority*” means the Senior Member of the Board of Revenue.]

²[(9) “Collector” means the Collector of a District appointed under the Punjab Land Revenue Act, 1967 (XVII of 1967) and includes an officer authorized by the Government to exercise the powers of the Collector;]

³[(9-A) “Commissioner” means a Commissioner of a Division appointed under the Punjab Land Revenue Act, 1967 (XVII of 1967) and includes an Additional Commissioner;]

(10) “conveyance” includes a conveyance on sale and every instrument by which property, whether moveable or immovable, is transferred *inter vivos* and which is not otherwise specifically provided for by Schedule I:

⁴[(11) “duly stamped” means affixation of an adhesive or impressed stamp or e-stamp of not less than the requisite amount and that the stamp has been legally affixed, used or electronically generated;]

⁵[(11A) “electronic” includes electrical, digital, magnetic, optical, biometric, electrochemical, wireless or electromagnetic technology;]

⁶[(11B) “e-stamp” means a paper printed or partially printed containing a bar code or having any of its unique identification code and such other information, as may be specified by the rules, to be generated and printed, on deposit of money equivalent to chargeable stamp duty in the account of the Government;]

(12) “executed” and “execution”, used with reference to instruments, mean “signed” and “signature”:

⁷[(12A) “*Government*” means *Government of the Punjab*]

⁸[(13) “impressed stamp” includes—

- (a) the label affixed and impressed by the proper officer;
- (b) the stamp embossed or engraved on a stamp paper; and

¹Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.4. It was earlier omitted by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

²Substituted by the Punjab Laws (Amendment) Act 2011 (VI of 2011), published in the Punjab Gazette (Extraordinary), dated: 14 April 2011, pp. 4043-4047, s. 5: it came into force on 20 April 2011, vide notification published in the Punjab Gazette (Extraordinary), dated: 16 April 2011, p. 4081. It was earlier substituted by the Stamp (Punjab Amendment) Ordinance, 2001 (XXXIV of 2001), published in the Punjab Gazette (Extraordinary), dated: 1 November 2001, pp. 1763-1764, s. 2: it came into force on 14 August 2001: the said Ordinance was saved under Article 270AA of the Constitution of the Islamic Republic of Pakistan, as substituted by the Constitution (Eighteenth Amendment) Act, 2010 (X of 2010), published in the Gazette of Pakistan (Extraordinary), dated: 20 April 2010, pp. 267-316, s. 96.

³Inserted by the Punjab Laws (Amendment) Act 2011 (VI of 2011), published in the Punjab Gazette (Extraordinary), dated: 14 April 2011, pp. 4043-4047, s. 5: it came into force on 20 April 2011, vide notification published in the Punjab Gazette (Extraordinary), dated: 16 April 2011, p. 4081.

⁴Substituted by the Stamp (Amendment) Act 2015 (XXXII of 2015), published in the Punjab Gazette (Extraordinary), dated: 26 June 2015, pp. 7375-7376, s. 2.

⁵Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.4.

⁶Inserted by the Stamp (Amendment) Act 2015 (XXXII of 2015), published in the Punjab Gazette (Extraordinary), dated: 26 June 2015, pp. 7375-7376, s. 2.

⁷Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.4. It was earlier omitted by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp. 753-754, s. 4. It was inserted by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

⁸Substituted by the Stamp (Amendment) Act 2015 (XXXII of 2015), published in the Punjab Gazette (Extraordinary), dated: 26 June 2015, pp. 7375-7376, s. 2.

(c) an e-stamp.]

(14) “instrument” includes every document by which any right or liability is, or purports to be, created, transferred, limited, extended, extinguished or recorded ¹[and includes any instrument executed in electronic form]:

(15) “instrument of partition” means any instrument whereby co-owners of any property divide or agree to divide such property in severalty, and includes also a final order for effecting a partition passed by any Revenue-authority or any Civil Court and an award by an arbitrator directing a partition:

(16) “lease” means a lease of immoveable property, and includes also—

(a) a patta;

(b) a *kabuliyat* or other undertaking in writing, not being a counterpart of a lease, to cultivate, occupy or pay or deliver rent for, immoveable property;

(c) any instrument by which tolls of any description are let;

(d) any writing on an application for a lease intended to signify that the application is granted:

²[(16A) “marketable security” means a security of such a description as to be capable of being sold in any stock market in ³[Pakistan] or in the United Kingdom:]

(17) “mortgage-deed” includes every instrument whereby, for the purpose of securing money advanced, or to be advanced, by way of loan, or an existing or future debt, or the performance of an engagement, one person transfers, or creates, to or in favour of, another, a right over or in respect of specified property:

⁴[(17A) “multi-storey” means a building having more than three storeys including basement;]

(18) “paper” includes vellum, parchment or any other material on which an instrument may be written:

(19) “policy of insurance” includes—

(a) any instrument by which one person, in consideration of a premium, engages to indemnify another against loss, damage

or liability arising from an unknown or contingent event;

(b) a life-policy, and any policy insuring any person against accident or sickness, and any other personal insurance: ⁵[*]

⁶[(c) * * * * *]

¹Inserted *ibid*.

²Inserted by the Indian Stamp (Amendment) Act, 1904 (XV of 1904), published in the Government Gazette, Punjab and its Dependencies, dated: 3 November 1904, pp. 45-46, s. 2.

³Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

⁴Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.4.

⁵The word “and” was repealed by the Indian Stamp (Amendment) Act, 1906 (V of 1906), published in the Gazette of India, dated: 24 March 1906, pp. 11-12, s. 2.

⁶Repealed *ibid*.

(20) “policy of sea-insurance” or “sea-policy”–

- (a) means any insurance made upon any ship or vessel (whether for marine or inland navigation), or upon the machinery, tackle or furniture of any ship or vessel, or upon any goods, merchandise or property of any description whatever on board of any ship or vessel, or upon the freight of, or any other interest which may be lawfully insured in or relating to, any ship or vessel, and
- (b) includes any insurance of goods, merchandise or property for any transit which includes, not only a sea risk within the meaning of clause (a), but also any other risk incidental to the transit insured from the commencement of the transit to the ultimate destination covered by the insurance:

Where any person, in consideration of any sum of money paid or to be paid for additional freight or otherwise, agrees to take upon himself any risk attending goods, merchandise or property of any description whatever while on board of any ship or vessel, or engages to indemnify the owner of any such goods, merchandise or property from any risk, loss or damage, such agreement or engagement shall be deemed to be a contract for sea-insurance:

(21) “power-of-attorney” includes any instrument (not chargeable with a fee under the law relating to Court-fees for the time being in force) empowering a specified person to act for and in the name of the person executing it:

(22) “promissory note” means a promissory note as defined by the Negotiable Instruments Act, 1881¹; it also includes a note promising the payment of any sum of money out of any particular fund which may or may not be available, or upon any condition or contingency which may or may not be performed or happen:

²[(22A) “public office” includes an office of the Government, a local government, a statutory corporation or a similar body set up by the Federal Government or the Government, a commercial or industrial concern whether singly owned or run through partnership having more than twenty employees, a development authority, a private housing scheme or a housing authority, a cooperative housing society, a real estate developer or a real estate broker, a banking company and any other entity whether registered or unregistered under any law for the being in force;

(22-B) “Public Officer” includes an Officer-in-Charge of a Public Office;]

(23) “receipt” includes any note, memorandum or writing–

- (a) whereby any money, or any bill of exchange, cheque or promissory note is acknowledged to have been received, or
- (b) whereby any other moveable property is acknowledged to have been received in satisfaction of a debt, or
- (c) whereby any debt or demand, or any part of a debt or demand, is acknowledged to have been satisfied or discharged, or
- (d) which signifies or imports any such acknowledgment,
and whether the same is or is not signed with the name of any person: ³[*]

¹XXVI of 1881.

²Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.4. It was earlier Added by the Stamp (Punjab Amendment) Act, 1973 (XXVI of 1973), published in the Punjab Gazette (Extraordinary), dated: 29 December 1973, pp. 1941-E to 1941-F, s. 2.

³The word “and” was omitted by the Repealing and Amending Act, 1928 (XVIII of 1928), published in the Gazette of India, dated: 29 September 1928, pp. 35-37, s. 2 read with the First Schedule.

¹[(23A) “service charge” means such amount as may be notified by the Finance Department of the Government to be charged from the purchaser by a bank, other than the Bank of Punjab, for issuance of e-Stamp by using online facility;]

(24) “settlement” means any non-testamentary disposition, in writing, of moveable or immoveable property, made—

- (a) in consideration of marriage,
- (b) for the purpose of distributing property of the settler among his family or those for whom he desires to provide, or for the purpose of providing for some person dependent on him, or
- (c) for any religious or charitable purpose:

and includes an agreement in writing to make such a disposition ²[and, where any such disposition has not been made in writing, any instrument recording, whether by way of declaration of trust or otherwise, the terms of any such disposition]. ³[and]

⁴[(25) “soldier” includes any person below the rank of non-commissioned officer who is enrolled under the Indian Army Act, 1911 ⁵ ⁶[or the Pakistan Army Act, 1952].]

⁸[(25A) “transferring or attesting authority” includes the principal executive officer of relevant public offices registering the transaction of transfer of right, title or interest in an immoveable property in its record;]

⁹[(26) “urban area” means an area which is:

- (a) a rating area under the Punjab Urban Immovable Property Tax Act, 1958 (*VI of 1958*);
- (b) the area already declared as an urban area under the Punjab Finance Act, 2010 (*VI of 2010*);
- (c) any other area which the Board of Revenue may, by notification, declare as an urban area; and
- ¹⁰[(d) an area defined as an urban area in the Punjab Local Government Act, 2019 (*XIII of 2019*) or an area developed by a development authority, housing authority, statutory body, cooperative housing society or a real estate company or developer.]]

¹Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.4

²Added by the Indian Stamp (Amendment) Act, 1904 (XV of 1904), published in the Government Gazette, Punjab and its Dependencies, dated: 3 November 1904, pp. 45-46, s. 2.

³Added by the Repealing and Amending Act, 1928 (XVIII of 1928), published in the Gazette of India, dated: 25 September 1928, pp. 35-37, s. 2 read with the First Schedule.

⁴*Ibid.*

⁵VIII of 1911.

⁶Added by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955.

⁷XXIX of 1952.

⁸Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.4.

⁹Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

¹⁰Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.4

CHAPTER II Stamp-duties

A.—Of the Liability of Instruments to Duty.

3. Instruments chargeable with duty.— Subject to the provisions of this Act and the exemptions contained in Schedule I, the following instruments shall be chargeable with duty of the amount indicated in that schedule as the proper duty therefor respectively, that is to say—

- (a) every instrument mentioned in that Schedule which, not having been previously executed by any person, is executed in ¹[Pakistan] on or after the first day of July, 1899;
- (b) every bill of exchange ²[payable otherwise than on demand], ³[*] or promissory note drawn or made out of ⁴[Pakistan] on or after that day and accepted or paid, or presented for acceptance or payment, or endorsed, transferred or otherwise negotiated, in ⁵[Pakistan]; and
- (c) every instrument (other than a bill of exchange, ⁶[*] or promissory note) mentioned in that Schedule, which, not having been previously executed by any person, is executed out of ⁷[Pakistan] on or after that day, relates to any property situate, or to any matter or thing done or to be done, in ⁸[Pakistan] and is received in ⁹[Pakistan]:

Provided that no duty shall be chargeable in respect of—

¹Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

²Inserted by the Indian Finance Act, 1927 (V of 1927), published in the Gazette of India, dated: 30 March 1927, s. 5: it came into force on 1 July 1927.

³The word “cheque” was omitted *ibid*.

⁴Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

⁵*Ibid*.

⁶The word “cheque” was omitted by the Indian Finance Act, 1927 (V of 1927), published in the Gazette of India, dated: 30 March 1927, s. 5: it came into force on 1 July 1927.

⁷Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

⁸Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

⁹*Ibid*.

- (1) any instrument executed by, or on behalf of, or in favour of, ¹[the Government]] in cases where, but for this exemption, ²[the Government] would be liable to pay the duty chargeable in respect of such instrument;
- (2) any instrument for the sale, transfer or other disposition, either absolutely or by way of mortgage or otherwise, of any ship or vessel, or any part, interest, share or property of or in any ship or vessel registered under the Merchant Shipping Act, 1894, or under Act XIX of 1838³, or the Indian Registration of Ships Act, 1841⁴, as amended by subsequent Acts.

4. Several instruments used in single transaction of sale, mortgage or settlement.— ⁵[(1) Where, in the case of any sale, mortgage or settlement, several instruments are employed for completing the transaction, the principal instrument only shall be chargeable with the duty prescribed in Schedule I, for the conveyance, mortgage of settlement, and each of the other instruments shall be chargeable with a duty of ⁶[five hundred] rupees instead of the duty (if any) prescribed for it in that schedule.]

(2) The parties may determine for themselves which of the instruments so employed shall, for the purposes of sub-section (1), be deemed to be the principal instrument:

Provided that the duty chargeable on the instrument so determined shall be the highest duty which would be chargeable in respect of any of the said instruments employed.

5. Instruments relating to several distinct matters.— Any instrument comprising or relating to several distinct matters shall be chargeable with the aggregate amount of the duties with which separate instruments, each comprising or relating to one of such matters, would be chargeable under this Act.

6. Instruments coming within several descriptions in Schedule I.— Subject to the provisions of the last preceding section, an instrument so framed as to come within two or more of the descriptions in Schedule I, shall, where the duties chargeable thereunder are different, be chargeable only with the highest of such duties:

⁷[Provided that nothing contained in this Act shall render chargeable with duty exceeding ⁸[five hundred] rupees a counterpart or duplicate of any instrument chargeable with duty and in respect of which the proper duty has been paid.]

¹Substituted for the words "the Crown" by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp. 753-754, s. 5. The word "Crown" was earlier substituted for the word "Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

²*Ibid.*

³The Bombay Coasting Vessels Act, 1838.

⁴X of 1841.

⁵Substituted by the Stamp (West Pakistan Amendment) Act, 1964 (II of 1964), published in the Gazette of West Pakistan (Extraordinary), dated: 7 March 1964, pp. 711-732, s. 2.

⁶Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.5.

⁷Substituted by the Stamp (West Pakistan Amendment) Act, 1964 (II of 1964), published in the Gazette of West Pakistan (Extraordinary), dated: 7 March 1964, pp. 711-732, s. 3.

⁸Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.6.

7. Policies of sea-insurance.— (1) No contract for sea-insurance (other than such insurance as is referred to in section 506 of the Merchant Shipping Act, 1894¹) shall be valid unless the same is expressed in a sea-policy.

(2) No sea-policy made for time shall be made for any time exceeding twelve months.

(3) No sea-policy shall be valid unless it specifies the particular risk or adventure, or the time, for which it is made, the names of the subscribers or underwriters, and the amount or amounts insured.

(4) Where any sea-insurance is made for or upon a voyage and also for time, or to extend to or cover any time beyond thirty days after the ship shall have arrived at her destination and been there moored at anchor, the policy shall be charged with duty as a policy for or upon a voyage, and also with duty as a policy for time.

8. Bonds, debentures or other securities issued on loans under Act XI, 1879.— (1) Notwithstanding anything in this Act, any local authority raising a loan under the provisions of the Local Authorities Loan Act, 1879², or of any other law for the time being in force, by the issue of bonds, debentures or other securities, shall, in respect of such loan, be chargeable with a duty of ³[one per centum] on the total amount of the bonds, debentures or other securities issued by it, and such bonds, debentures or other securities need not be stamped and shall not be chargeable with any further duty on renewal, consolidation, sub-division or otherwise.

(2) The provisions of sub-section (1) exempting certain bonds, debentures or other securities from being stamped and from being chargeable with certain further duty shall apply to the bonds, debentures or other securities of all outstanding loans of the kind mentioned therein, and all such bonds, debentures or other securities shall be valid, whether the same are stamped or not:

Provided that nothing herein contained shall exempt the local authority which has issued such bonds, debentures or other securities from the duty chargeable in respect thereof prior to the twenty-sixth day of March, 1897, when such duty has not already been paid or remitted by order issued by the ⁴ ⁵[Federal] Government].

(3) In the case of wilful neglect to pay the duty required by this section, the local authority shall be liable to forfeit to the ⁶[Government] a sum equal to ten per centum upon the amount of duty payable, and a like penalty for every month after the first month during which the neglect continues.

¹57 & 58 Vict., C. 60.

²XI of 1879.

³Substituted for the words "eight annas per centum" by the Indian Stamp (Amendment) Act, 1910 (VI of 1910), published in the Government Gazette, Punjab and its Dependencies, dated: 18 March 1910, pp. 25-27, s. 2.

⁴Substituted for the words "Governor General in Council" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁵Substituted for the word "Central" by the Punjab Laws (Adaptation) Order, 1974 (P.O. No. 1 of 1974), published in the Punjab Gazette (Extraordinary), dated: 20 November 1974, pp. 1425-A to 1425-PP, Article 2 read with the Schedule: it came into force on 14 August 1973.

⁶Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.2. It was earlier substituted for the word "Government" by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp. 753-754, s. 6.

9. Power to reduce, remit or compound duties.— ¹[The ²[Government]] may, by rule or order published in the ³[Official Gazette],—

- (a) reduce or remit, whether prospectively or retrospectively, in the whole or any part of ⁴[the territories under its administration], the duties with which any instruments or any particular class of instruments, or any of the instruments belonging to such class, or any instruments when executed by or in favour of any particular class of persons, or by or in favour of any members of such class, are chargeable, and
- (b) provide for the composition or consolidation of duties in the case of issues by any incorporated company or other body corporate of debentures, bonds or other marketable securities.

⁵**[9-A. Power of ⁶[Government] to exempt certain instruments.**— The ⁷[Government] may by ⁸[notification in] the official Gazette, generally exempt from payment of the whole or any part of the duties on any instrument executed by or in favour of a banking company in the normal course of its banking business.

Explanation.— For the purpose of this Section, “Banking Company” shall have the same meaning as in the Banking Tribunals Ordinance, 1984 (Ordinance No. LVIII of 1984).]

B.—Of Stamps and the mode of using them.

10. Duties how to be paid.— (1) Except as otherwise expressly provided in this Act, all duties with which any instruments are chargeable shall be paid, and such payment shall be indicated on such instruments, by means of stamps ⁹[or e-stamps]—

- (a) according to the provisions herein contained; or,
 - (b) when no such provision is applicable thereto as the ¹⁰[Government] may by rules direct.
- (2) The rules made under sub-section (1) may, among other matters, regulate,—

¹Substituted for the words “the Governor-General in Council” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

²Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.2. It was earlier Substituted for the words “Collecting Government” by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp. 753-754, s. 3.

³Substituted for the words “Gazette of India” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁴*Ibid.*, for the words “British India”, Article 3 read with the First Schedule.

⁵Inserted by the Punjab Stamp (Amendment) Ordinance, 1984 (XXXVII of 1984), published in the Punjab Gazette (Extraordinary), dated: 31 December 1984, pp. 3017-3018, s. 2.

⁶Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.2

⁷Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.2.

⁸Added by the corrigendum published in the Punjab Gazette (Extraordinary), dated: 31 December 1984, pp. 3029.

⁹Inserted by the Stamp (Amendment) Act 2015 (XXXII of 2015), published in the Punjab Gazette (Extraordinary), dated: 26 June 2015, pp. 7375-7376, s. 3.

¹⁰Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.2. It was earlier Substituted for the words “collecting Government” by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp. 753-754, s. 3. The words “collecting Government” were earlier substituted for the words “Governor-General in Council” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

- (a) in the case of each kind of instrument—the description of stamps ¹[or e-stamps] which may be used;
- (b) in the case of instruments stamped with impressed stamps—the number of stamps which may be used;
- (c) in the case of bills of exchange or promissory notes written in any Oriental language—the size of the paper on which they are written.

11. Use of adhesive stamps.— The following instruments may be stamped with adhesive stamps, namely:—

- (a) instruments chargeable with ²[a duty not exceeding ³[one hundred rupees]], except parts of bills of exchange payable otherwise than on demand and drawn in sets;
- (b) bills of exchange, ⁴[*] and promissory notes drawn or made out of ⁵[Pakistan];
- (c) entry as an advocate, vakil or attorney on the roll of a High Court;
- (d) notarial acts; and
- (e) transfers by endorsement of shares in any incorporated company or other body corporate.

12. Cancellation of adhesive stamps.— (1) (a) Whoever affixes any adhesive stamp to any instrument chargeable with duty which has been executed by any person shall, when affixing such stamp, cancel the same so that it cannot be used again; and

- (b) whoever executes any instrument on any paper bearing an adhesive stamp shall, at the time of execution, unless such stamp has been already cancelled in manner aforesaid, cancel the same so that it cannot be used again.

(2) Any instrument bearing an adhesive stamp which has not been cancelled so that it cannot be used again, shall, so far as such stamp is concerned, be deemed to be unstamped.

(3) The person required by sub-section (1) to cancel an adhesive stamp may cancel it by writing on or across the stamp his name or initials or the name or initials of his firm with the true date of his so writing, or in any other effectual manner.

13. Instruments stamped with impressed stamps how to be written.— Every instrument written upon paper stamped with an impressed stamp shall be written in such manner that the stamp may appear on the face of the instrument and cannot be used for or applied to any other instrument.

¹Inserted by the Stamp (Amendment) Act 2015 (XXXII of 2015), published in the Punjab Gazette (Extraordinary), dated: 26 June 2015, pp. 7375-7376, s. 3.

²Substituted for the words “the duty of one anna [or half an anna]” by the Stamp (West Pakistan Amendment) Act, 1964 (II of 1964), published in the Gazette of West Pakistan (Extraordinary), dated: 7 March 1964, pp. 711-732, s. 4. The words “or half an anna” were inserted by the Indian Stamp (Amendment) Act, 1906 (V of 1906), published in the Gazette of India, dated: 24 March 1906, pp. 11-12, s. 3.

³Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.7.

⁴The word “cheques” was omitted by the Indian Finance Act, 1927 (V of 1927), published in the Gazette of India, dated: 30 March 1927, s. 5: it came into force on 1 July 1927.

⁵Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

14. Only one instrument to be on same stamp.— No second instrument chargeable with duty shall be written upon a piece of stamped paper upon which an instrument chargeable with duty has already been written:

Provided that nothing in this section shall prevent any endorsement which is duly stamped or is not chargeable with duty being made upon any instrument for the purpose of transferring any right created or evidenced thereby, or of acknowledging the receipt of any money or goods the payment or delivery of which is secured thereby.

15. Instrument written contrary to section 13 or 14 deemed unstamped.— Every instrument written in contravention of section 13 or section 14 shall be deemed to be unstamped.

16. Denoting duty.— Where the duty with which an instrument is chargeable, or its exemption from duty, depends in any manner upon the duty actually paid in respect of another instrument, the payment of such last-mentioned duty shall, if application is made in writing to the Collector for that purpose, and on production of both the instruments, be denoted upon such first-mentioned instrument by endorsement under the hand of the Collector or in such other manner (if any) as the ¹[Government] may by rule prescribe.

C.—Of the time of stamping Instruments.

17. Instruments executed in ²[Pakistan].— All instruments chargeable with duty and executed by any person in ³[Pakistan] shall be stamped before or at the time of execution.

18. Instruments other than bills, ⁴[*] and notes executed out of ⁵[Pakistan].— (1) Every instrument chargeable with duty executed only out of ⁶[Pakistan], and not being a bill

¹Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.2. It was earlier substituted for the words “collecting Government” by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp. 753-754, s. 3. The words “collecting Government” were earlier substituted for the words “Governor-General in Council” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

²Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

³*Ibid.*

⁴The word “cheques” was omitted by the Indian Finance Act, 1927 (V of 1927), published in the Gazette of India, dated: 30 March 1927, s. 5: it came into force on 1 July 1927.

⁵Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier

substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

⁶Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

of exchange, ¹[*] or promissory note, may be stamped within three months after it has been first received in ²[Pakistan].

(2) Where any such instrument cannot, with reference to the description of stamp prescribed therefor, be duly stamped by a private person, it may be taken within the said period of three months to the Collector, who shall stamp the same, in such manner as the ³[Government] may by rule prescribe, with a stamp of such value as the person so taking such instrument may require and pay for.

19. Bills, ⁴[*] and notes drawn out of ⁵[Pakistan].— The first holder in ⁶[Pakistan] of any bill of exchange ⁷[payable otherwise than on demand], ⁸[*] or promissory note drawn or made out of ⁹[Pakistan] shall, before he presents the same for acceptance or payment, or endorses, transfers or otherwise negotiates the same in ¹⁰[Pakistan], affix thereto the proper stamp and cancel the same:

Provided that,—

(a) if, at the time any such bill of exchange, ¹¹[*] or note comes into the hands of any holder thereof in ¹[Pakistan], the proper adhesive stamp is affixed thereto

¹The word “cheque” was omitted by the Indian Finance Act, 1927 (V of 1927), published in the Gazette of India, dated: 30 March 1927, s. 5: it came into force on 1 July 1927.

²Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

³Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.2. It was earlier Substituted for the words “collecting Government” by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp. 753-754, s. 3. The words “collecting Government” were earlier substituted for the words “Governor-General in Council” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

⁴The word “cheques” was omitted by the Indian Finance Act, 1927 (V of 1927), published in the Gazette of India, dated: 30 March 1927, s. 5: it came into force on 1 July 1927.

⁵Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

⁶*Ibid.*

⁷Inserted by the Indian Finance Act, 1927 (V of 1927), published in the Gazette of India, dated: 30 March 1927, s. 5: it came into force on 1 July 1927.

⁸The word “cheque” was omitted *ibid.*

⁹Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws

(Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

¹⁰Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

¹¹The word “cheque” was omitted by the Indian Finance Act, 1927 (V of 1927), published in the Gazette of India, dated: 30 March 1927, s. 5: it came into force on 1 July 1927.

and cancelled in manner prescribed by section 12 and such holder has no reason to believe that such stamp was affixed or cancelled otherwise than by the person and at the time required by this Act, such stamp shall, so far as relates to such holder, be deemed to have been duly affixed and cancelled.

- (b) Nothing contained in this proviso shall relieve any person from any penalty incurred by him for omitting to affix or cancel a stamp.

D.—Of Valuations for duty.

20. Conversion of amount expressed in foreign currencies.— (1) Where an instrument is chargeable with *ad valorem* duty in respect of any money expressed in any currency other than that of ²[Pakistan], such duty shall be calculated on the value of such money in the currency of ³[Pakistan] according to the current rate of exchange on the day of the date of the instrument.

(2) The ⁴⁵[[Federal] Government] may, from time to time, by notification in the ⁶[Official Gazette], prescribe a rate of exchange for the conversion of British or any foreign currency into the currency of ⁷[Pakistan] for the purposes of calculating stamp-duty, and such rate shall be deemed to be the current rate for the purposes of sub-section (1).

21. Stock and marketable securities how to be valued.— Where an instrument is chargeable with *ad valorem* duty in respect of any stock or of any marketable or other security, such duty shall be calculated on the value of such stock or security according to the average price or the value thereof on the day of the date of the instrument.

22. Effect of statement of rate of exchange or average price.— Where an instrument contains a statement of current rate of exchange, or average price, as the case may require, and is stamped in accordance with such statement, it shall, so far as regards the subject-matter of such statement, be presumed, until the contrary is proved, to be duly stamped.

23. Instruments reserving interest.— Where interest is expressly made payable by the terms of an instrument, such instrument shall not be chargeable with duty higher than that with which it would have been chargeable had no mention of interest been made therein.

¹Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

²*Ibid.*

³*Ibid.*

⁴Substituted for the words “Governor General in Council” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁵Substituted for the word “Central” by the Punjab Laws (Adaptation) Order, 1974 (P.O. No.1 of 1974), published in the Punjab Gazette (Extraordinary), dated: 20 November 1974, pp. 1425-A to 1425-PP, Article 2 read with the Schedule: it came into force on 14 August 1973.

⁶Substituted for the words “Gazette of India” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁷Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

¹[**23A. Certain instruments connected with mortgages of marketable securities to be chargeable as agreements.**— (1) Where an instrument (not being a promissory note or bill of exchange)—

- (a) is given upon the occasion of the deposit of any marketable security by way of security for money advanced or to be advanced by way of loan, or for an existing or future debt; or
- (b) makes redeemable or qualifies a duly stamped transfer, intended as a security, of any marketable security;

it shall be chargeable with duty as if it were an agreement or memorandum of an agreement chargeable with duty under ²[Article No. 5 (c)] of Schedule I.

(2) A release or discharge of any such instrument shall only be chargeable with the like duty.]

24. How transfer in consideration of debt, or subject to future payment, etc., to be charged.— Where any property is transferred to any person in consideration, wholly or in part, of any debt due to him, or subject either certainly or contingently to the payment or transfer of any money or stock, whether being or constituting a charge or encumbrance upon the property or not, such debt, money or stock is to be deemed the whole or part, as the case may be, of the consideration in respect whereof the transfer is chargeable with *ad valorem* duty:

Provided that nothing in this section shall apply to any such certificate of sale as is mentioned in Article No. 18 of Schedule I.

Explanation.— In the case of a sale of property subject to a mortgage or other encumbrance, any unpaid mortgage-money or money charged, together with the interest (if any) due on the same, shall be deemed to be part of the consideration for the sale:

Provided that, where property subject to a mortgage is transferred to the mortgagee, he shall be entitled to deduct from the duty payable on the transfer the amount of any duty already paid in respect of the mortgage.

Illustrations

(1) A owes B Rs. 1,000. A sells a property to B, the consideration being Rs.500 and the release of the previous debt of Rs.1,000 Stamp-duty is payable on Rs.1,500.

(2) A sells a property to B for Rs.500 which is subject to a mortgage to C for Rs.1,000, and unpaid interest Rs. 200. Stamp-duty is payable on Rs.1,700.

(3) A mortgages a house of the value of Rs.10,000 to B for Rs. 5,000. B afterwards buys the house from A. Stamp-duty is payable on Rs.10,000 less the amount of stamp-duty already paid for the mortgage.

25. Valuation in case of annuity, etc.— Where an instrument is executed to secure the payment of an annuity or other sum payable periodically, or where the consideration for a conveyance is an annuity or other sum payable periodically, the amount secured by such instrument or the consideration for such conveyance, as the case may be, shall, for the purposes of this Act, be deemed to be,—

- (a) where the sum is payable for a definite period so that the total amount to be paid can be previously ascertained—such total amount;

¹Added by the Indian Stamp (Amendment) Act, 1904 (XV of 1904), published in the Government Gazette, Punjab and its Dependencies, dated: 3 November 1904, pp. 45-46, s. 3.

²Substituted for the expression "Article No. 5(b)" by the Indian Stamp (Amendment) Act, 1912 (I of 1912), published in the Gazette of India, dated: 9 March 1912, p.1, s.3.

- (b) where the sum is payable in perpetuity or for an indefinite time not terminable with any life in being at the date of such instrument or conveyance—the total amount which, according to the terms of such instrument or conveyance, will or may be payable during the period of twenty years calculated from the date on which the first payment becomes due; and
- (c) where the sum is payable for an indefinite time terminable with any life in being at the date of such instrument or conveyance—the maximum amount which will or may be payable as aforesaid during the period of twelve years calculated from the date on which the first payment becomes due.

26. Stamp where value of subject-matter is indeterminate.— Where the amount or value of the subject-matter of any instrument chargeable with *ad valorem* duty cannot be, or (in the case of an instrument executed before the commencement of this Act) could not have been, ascertained at the date of its execution or first execution, nothing shall be claimable under such instrument more than the highest amount or value for which, if stated in an instrument of the same description, the stamp actually used would, at the date of such execution, have been sufficient:

¹[Provided that, in the case of the lease of a mine in which royalty or a share of the produce is received as the rent or part of the rent, it shall be sufficient to have estimated such royalty or the value of such share, for the purpose of stamp-duty,—

- (a) when the lease has been granted by or on behalf of ²[Government], at such amount or value as the Collector may, having regard to all the circumstances of the case, have estimated as likely to be payable by way of royalty or share to ³[Government] under the lease, or,
- (b) when the lease has been granted by any other person, at twenty thousand rupees a year;

and the whole amount of such royalty or share, whatever it may be, shall be claimable under such lease.]

Provided also that, where proceedings have been taken in respect of an instrument under section 31 or 41, the amount certified by the Collector shall be deemed to be the stamp actually used at the date of execution.

27. Facts affecting duty to be set forth in instrument.— The consideration (if any) and all other facts and circumstances affecting the chargeability of any instrument with duty, or the amount of the duty with which it is chargeable, shall be fully and truly set forth therein.

⁴[**27-A. Value of immovable property.**— (1) Where any instrument chargeable with *ad valorem* duty under ¹[Articles ²[23, 27-A, 31, 33, 35 (1)(b), 48 (b), 48 (bb), 55(b), 63 and 63-

¹Substituted by the Indian Stamp (Amendment) Act, 1904 (XV of 1904), published in the Government Gazette, Punjab and its Dependencies, dated: 3 November 1904, pp. 45-46, s. 4.

²Substituted for the words “the Crown” by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp. 753-754, s. 5. They were earlier substituted for the words “the Secretary of State in Council” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

³Substituted for the words “the Crown” by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp. 753-754, s. 5. They were earlier substituted for the words “the said Secretary of State in Council” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

⁴Substituted by the Punjab Finance Act 2010 (VI of 2010), published in the Punjab Gazette (Extraordinary), dated: 28 June 2010, pp. 3145-3150, s. 2: it came into force on 1 July 2010. It was earlier added by the Punjab Finance Act, 1986 (IV of 1986), published in the Punjab Gazette (Extraordinary), dated: 14 June 1986, pp. 1307-1309, s. 2.

A]] of Schedule I, relates to an immovable property, the value of the immovable property shall be calculated according to the valuation table notified by the District Collector in respect of immovable property situated in the locality.

³[(2) Where an instrument mentioned in subsection (1) relates to an immovable property consisting of land and structure including a multi-storey building, such instrument shall state the value of the land and structure separately, and stamp duty on the structure shall be calculated as per the covered area or the area of the structure mentioned in the instrument whichever is higher, and in case there is no approved building plan, two percent duty of the value of land in addition to payable duty shall be charged.]

(3) Where the value of immovable property stated in an instrument to which subsection (1) applies is more than the value fixed according to the valuation table, the value declared in the instrument shall be accepted as value for the purposes of stamp duty.

⁴[(4) Any person aggrieved by the value given in the valuation table notified under sub-section (1), may, within thirty days from the date of issuance of such notification, file appeal before the Commissioner who shall decide it within fifteen days from the date of its filing. However, no review shall be entertained by the District Collector against the valuation table notified under sub-section (1).]

28. Direction as to duty in case of certain conveyances.— (1) Where any property has been contracted to be sold for one consideration for the whole, and is conveyed to the purchaser in separate parts by different instruments, the consideration shall be apportioned in such manner as the parties think fit, provided that a distinct consideration for each separate part is set forth in the conveyance relating thereto, and such conveyance shall be chargeable with *ad valorem* duty in respect of such distinct consideration.

(2) Where property contracted to be purchased for one consideration for the whole, by two or more persons jointly, or by any person for himself and others, or wholly for others, is conveyed in parts by separate instruments to the persons by or for whom the same was purchased, for distinct parts of the consideration, the conveyance of each separate part shall be chargeable with *ad valorem* duty in respect of the distinct part of the consideration therein specified.

(3) Where a person, having contracted for the purchase of any property but not having obtained a conveyance thereof, contracts to sell the same to any other person and the property is in consequence conveyed immediately to the sub-purchaser, the conveyance shall be chargeable with *ad valorem* duty in respect of the consideration for the sale by the original purchaser to the sub-purchaser.

(4) Where a person, having contracted for the purchase of any property but not having obtained a conveyance thereof, contracts to sell the whole, or any part thereof, to any other person or persons and the property is in consequence conveyed by the original seller to different persons in parts, the conveyance of each part sold to a sub-purchaser shall be

¹Substituted for the expression "Articles 23, 27-A, 31, 33 or 63" by the Punjab Finance Act 2016 (XXXV of 2016), published in the Punjab Gazette (Extraordinary), dated: 29 June 2016, pp. 6083-6092, s. 2: it came into force on 1 July 2016. The said expression was earlier substituted for the expression "Articles 23, 27-A, 31 or 33" by the Punjab Finance Act 2015 (XXIX of 2015), published in the Punjab Gazette (Extraordinary), dated: 26 June 2015, pp. 7361-7368, s. 2: it came into force on 1 July 2015. The said expression was earlier substituted for the expression "Articles 23, 31 or 33" by the Punjab Finance Act 2012 (XLI of 2012), published in the Punjab Gazette (Extraordinary), dated: 25 June 2012, pp. 41719-41724: it came into force on 1 July 2012.

²Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.8.

³Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.8.

⁴Substituted by the Stamp (Amendment) Act 2025 (XXXVI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, p.4767 s.2.

chargeable with *ad valorem* duty in respect only of the consideration paid by such sub-purchaser, without regard to the amount or value of the original consideration; and the conveyance of the residue (if any) of such property to the original purchaser shall be chargeable with *ad valorem* duty in respect only of the excess of the original consideration over the aggregate of the considerations paid by the sub-purchasers¹[.]

²[* * * * *].

(5) Where a sub-purchaser takes an actual conveyance of the interest of the person immediately selling to him, which is chargeable with *ad valorem* duty in respect of the consideration paid by him and is duly stamped accordingly, any conveyance to be afterwards made to him of the same property by the original seller shall be chargeable with a duty equal to that which would be chargeable on a conveyance for the consideration obtained by such original seller, or, where such duty would exceed ³[five hundred] rupees, with a duty of ⁴[five hundred] rupees.

E.—Duty by whom payable.

29. Duties by whom payable.— In the absence of an agreement to the contrary, the expense of providing the proper stamp shall be borne—

(a) in the case of any instrument described in any of the following Articles of Schedule I, namely:—

No. 2. (Administration Bond),

⁵[No. 6.(Agreement relating to Deposit of Title-deeds, Pawn or Pledge],

No. 13.(Bill of Exchange),

No. 15.(Bond),

No. 16. (Bottomry Bond),

No. 26.(Customs Bond),

No. 27.(Debenture),

No. 32.(Further Charge),

No. 34.(Indemnity-Bond),

No. 40.(Mortgage-Deed),

No. 49.(Promissory-Note),

No. 55.(Release),

No. 56.(Respondentia Bond),

No. 57.(Security Bond or Mortgage-Deed),

No. 58.(Settlement),

¹Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.9.

²Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.9.

³Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.9.

⁴Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.9.

⁵Substituted for the expression "No. 6. (Agreement to mortgage)" by the Indian Stamp (Amendment) Act, 1904 (XV of 1904), published in the Government Gazette, Punjab and its Dependencies, dated: 3 November 1904, pp. 45-46, s. 5.

No. 62(a) (Transfer of shares in an incorporated company or other body corporate),

No. 62(b) Transfer of Debentures, being marketable securities whether the debenture is liable to duty or not, except debentures provided for by section 8,

No. 62(c) Transfer of any interest secured by a bond, mortgage-deed or policy of insurance,—

by the person drawing, making or executing such instrument:

- ¹[(b) in the case of a policy of insurance other than fire-insurance—by the person effecting the insurance;
- (bb) in the case of a policy of fire-insurance—by the person issuing the policy;]
- (c) in the case of a conveyance (including a re-conveyance of mortgaged property)—by the grantee ²[and grantor in equal shares]: in the case of a lease or agreement to lease—by the lessee or intended lessee:
- (d) in the case of a counterpart of a lease—by the lessor:
- (e) in the case of an instrument of exchange—by the parties in equal shares:
- (f) in the case of a certificate of sale—by the purchaser of the property to which such certificate relates; ³[*]
- (g) in the case of an instrument of partition—by the parties thereto in proportion to their respective shares in the whole property partitioned, or, when the partition is made in execution of an order passed by a Revenue-authority or Civil Court or arbitrator, in such proportion as such authority, Court or arbitrator directs ⁴[:]
- ⁵[(h) in the case of a contract chargeable with stamp duty under Article 22-A of Schedule I, the stamp duty shall be payable by the contractor in whose favour the instrument is executed;
- (i) in the case of a decree, rule of a court or an order of a court chargeable with stamp duty under Article 27-A of Schedule I, the stamp duty shall be paid by the beneficiary of the decree, rule or order;
- (j) in the case of a gift chargeable with stamp duty under Article 33 of Schedule I, the stamp duty shall be paid by the person in whose favour the instrument is executed; and
- (k) in the case of transfer of right or interest relating to an immovable property chargeable with stamp duty under Article 63-A of Schedule I, the stamp duty shall be paid by the person in whose favour the transfer of the right or interest relating to an immovable property is made.]

30. Obligation to give receipt in certain cases.— Any person receiving any money exceeding twenty rupees in amount, or any bill of exchange, cheque or promissory note for an amount exceeding twenty rupees, or receiving in satisfaction or part satisfaction of a debt any movable property exceeding twenty rupees in value, shall, on demand by the person

¹Substituted by the Indian Stamp (Amendment) Act, 1906 (V of 1906), published in the Gazette of India, dated: 24 March 1906, pp. 11-12, s. 4.

²Inserted by the Punjab Finance Act, 1992 (VI of 1992), published in the Punjab Gazette (Extraordinary), dated: 29 June 1992, pp. 2959-C to 2959-F, s. 2: it came into force on 1 July 1992.

³The word “and” was omitted by the Punjab Finance Act 2016 (XXXV of 2016), published in the Punjab Gazette (Extraordinary), dated: 29 June 2016, pp. 6083-6092, s. 2: it came into force on 1 July 2016.

⁴Substituted *ibid.* for the “full stop”.

⁵Inserted *ibid.*

paying or delivering such money, bill, cheque, note or property, give a duly stamped receipt for the same.

¹[Any person receiving or taking credit for any premium or consideration for any renewal of any contract of fire-insurance, shall, within one month after receiving or taking credit for such premium or consideration, give a duly stamped receipt for the same.]

CHAPTER III **Adjudication as to Stamps**

31. Adjudication as to proper stamp.— ²[(1) When any instrument, whether executed or not and whether previously stamped or not is brought to the Collector, and the person bringing the instrument applies to have the opinion of the Collector as to the duty, if any, with which it is chargeable, and pays a fee of one thousand rupees, the Collector shall determine the duty, if any, with which in his judgment the instrument is chargeable.]

(2) For this purpose the Collector may require to be furnished with an abstract of the instrument, and also with such affidavit or other evidence as he may deem necessary to prove that all the facts and circumstances affecting the chargeability of the instrument with duty, or the amount of the duty with which it is chargeable, are fully and truly set forth therein, and may refuse to proceed upon any such application until such abstract and evidence have been furnished accordingly:

Provided that—

- (a) no evidence furnished in pursuance of this section shall be used against any person in any civil proceeding, except in an enquiry as to the duty with which the instrument to which it relates is chargeable; and
- (b) every person by whom any such evidence is furnished, shall, on payment of the full duty with which the instrument to which it relates, is chargeable, be relieved from any penalty which he may have incurred under this Act by reason of the omission to state truly in such instrument any of the facts or circumstances aforesaid.

32. Certificate by Collector.— (1) When an instrument brought to the Collector under section 31 is, in his opinion, one of a description chargeable with duty, and—

- (a) the Collector determines that it is already fully stamped, or
- (b) the duty determined by the Collector under section 31, or such a sum as, with the duty already paid in respect of the instrument, is equal to the duty so determined, has been paid,

the Collector shall certify by endorsement on such instrument that the full duty (stating the amount) with which it is chargeable has been paid.

(2) When such instrument is, in his opinion, not chargeable with duty, the Collector shall certify in manner aforesaid that such instrument is not so chargeable.

(3) Any instrument upon which an endorsement has been made under this section, shall be deemed to be duly stamped or not chargeable with duty, as the case may be; and, if chargeable with duty, shall be receivable in evidence or otherwise, and may be acted upon and registered as if it had been originally duly stamped:

¹Added by the Indian Stamp (Amendment) Act, 1906 (V of 1906), published in the Gazette of India, dated: 24 March 1906, pp. 11-12, s. 5.

²Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.10.

Provided that nothing in this section shall authorize the Collector to endorse—

- (a) any instrument executed or first executed in ¹[Pakistan] and brought to him after the expiration of one month from the date of its execution or first execution, as the case may be;
- (b) any instrument executed or first executed out of ²[Pakistan] and brought to him after the expiration of three months after it has been first received in ³[Pakistan]; or
- (c) any instrument chargeable with ⁴[a duty not exceeding ⁵[five hundred rupees]], or any bill of exchange or promissory note, when brought to him, after the drawing or execution thereof, on paper not duly stamped.

⁶[32A. **Certificate of designated officer.**— An officer designated by the Government shall, by notification in the official Gazette, issue a certificate as to genuineness or otherwise of an e-stamp for the purpose of evidence in a legal proceedings.]

CHAPTER IV

Instruments not duly Stamped

33. Examination and impounding of instruments.— (1) Every person having by law or consent of parties authority to receive evidence, and every person in charge of a public office, except an officer of police, before whom any instrument, chargeable, in his opinion, with duty, is produced or comes in the performance of his functions, shall, if it appears to him that such instrument is not duly stamped, impound the same.

(2) For that purpose every such person shall examine every instrument so chargeable and so produced or coming before him, in order to ascertain whether it is stamped with a stamp of the value and description required by the law in force in ⁷[Pakistan] when such instrument was executed or first executed:

Provided that—

- (a) nothing herein contained shall be deemed to require any Magistrate or Judge of a Criminal Court to examine or impound, if he does not think fit so to do, any instrument coming before him in the course of any proceeding other than

¹Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

²*Ibid.*

³*Ibid.*

⁴Substituted for the words “the duty of one anna [or half an anna]” by the Stamp (West Pakistan Amendment) Act, 1964 (II of 1964), published in the Gazette of West Pakistan (Extraordinary), dated: 7 March 1964, pp. 711-732, s. 6. The words “or half an anna” were inserted by the Indian Stamp (Amendment) Act, 1906 (V of 1906), published in the Gazette of India, dated: 24 March 1906, pp. 11-12, s. 3.

⁵Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.11.

⁶Inserted by the Stamp (Amendment) Act 2015 (XXXII of 2015), published in the Punjab Gazette (Extraordinary), dated: 26 June 2015, pp. 7375-7376, s. 4.

⁷Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words “British India” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

a proceeding under Chapter XII or Chapter XXXVI of the Code of Criminal Procedure, 1898¹;

- (b) in the case of a Judge of a High Court, the duty of examining and impounding any instrument under this section may be delegated to such officer as the Court appoints in this behalf.
- (3) For the purposes of this section, in cases of doubt,—
 - (a) ²[the ³[Government]] may determine what offices shall be deemed to be public offices, and
 - (b) ⁴[the ⁵[Government]] may determine who shall be deemed to be persons in charge of public offices.

34. Special provision as to unstamped receipts.— Where any receipt chargeable with a duty ⁶[not exceeding ⁷[fifty rupees] is tendered to or produced before any officer unstamped in the course of the audit of any public account, such officer may in his discretion, instead of impounding the instrument, require a duly stamped receipt to be substituted therefor.

35. Instruments not duly stamped inadmissible in evidence, etc.— No instrument chargeable with duty shall be admitted in evidence for any purpose by any person having by law or consent of parties authority to receive evidence, or shall be acted upon, registered or authenticated by any such person or by any public officer, unless such instrument is duly stamped:

Provided that—

- (a) any such instrument not being an instrument chargeable with a duty ⁸[not exceeding ⁹[fifty rupees]] only, or a bill of exchange or promissory note, shall, subject to all just exceptions, be admitted in evidence on payment of the duty with which the same is chargeable, or, in the case of an instrument insufficiently stamped, of the amount required to make up such duty, together with a penalty of ¹⁰[five hundred rupees], or, when ten times the amount of the

¹V of 1898.

²Substituted for the words “the Governor-General in Council” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

³Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.2. It was earlier Substituted for the words “Collecting Government” by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp. 753-754, s. 3.

⁴Substituted for the words “the Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

⁵Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.2. It was earlier Substituted for the words “Collecting Government” by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp. 753-754, s. 3.

⁶Substituted for the words “of one anna” by the Stamp (West Pakistan Amendment) Act, 1964 (II of 1964), published in the Gazette of West Pakistan (Extraordinary), dated: 7 March 1964, pp. 711-732, s. 7.

⁷Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.12.

⁸Substituted for the words “of one anna [or half an anna]”, by the Stamp (West Pakistan Amendment) Act, 1964 (II of 1964), published in the Gazette of West Pakistan (Extraordinary), dated: 7 March 1964, pp. 711-732, s. 8. The words “or half an anna” were inserted by the Indian Stamp (Amendment) Act, 1906 (V of 1906), published in the Gazette of India, dated: 24 March 1906, pp. 11-12, s. 3.

⁹Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.13.

¹⁰Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.13.

proper duty or deficient portion thereof exceeds ¹[five hundred rupees], of a sum equal to ten times such duty or portion;

- (b) where any person from whom a stamped receipt could have been demanded, has given an unstamped receipt and such receipt, if stamped, would be admissible in evidence against him, then such receipt shall be admitted in evidence against him on payment of a penalty of one rupee by the person tendering it;
- (c) where a contract or agreement of any kind is effected by correspondence consisting of two or more letters and any one of the letters bears the proper stamp, the contract or agreement shall be deemed to be duly stamped;
- (d) nothing herein contained shall prevent the admission of any instrument in evidence in any proceeding in a Criminal Court, other than a proceeding under Chapter XII or Chapter XXXVI of the Code of Criminal Procedure, 1898²;
- (e) nothing herein contained shall prevent the admission of any instrument in any Court when such instrument has been executed by or on behalf of ³[the Government], or where it bears the certificate of the Collector as provided by section 32 or any other provision of this Act.

36. Admission of instrument where not to be questioned.— Where an instrument has been admitted in evidence, such admission shall not, except as provided in section 61, be called in question at any stage of the same suit or proceeding on the ground that the instrument has not been duly stamped.

37. Admission of improperly stamped instruments.— ⁴[The ⁵[Government]]may make rules providing that, where an instrument bears a stamp of sufficient amount but of improper description, it may, on payment of the duty with which the same is chargeable, be certified to be duly stamped, and any instrument so certified shall then be deemed to have been duly stamped as from the date of its execution.

38. Instruments impounded how dealt with.— (1) When the person impounding an instrument under section 33 has by law or consent of parties authority to receive evidence and admits such instrument in evidence upon payment of a penalty as provided by section 35 or of duty as provided by section 37, he shall send to the Collector an authenticated copy of such instrument, together with a certificate in writing, stating the amount of duty and penalty levied in respect thereof, and shall send such amount to the Collector, or to such person as he may appoint in this behalf.

(2) In every other case, the person so impounding an instrument shall send it in original to the Collector.

¹Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.13.

²V of 1898.

³Substituted for the words “the Crown” by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp. 753-754, s. 5. They were earlier substituted for the words “the Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

⁴Substituted for the words “the Governor-General in Council” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

⁵Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.2. It was earlier Substituted for the words “Collecting Government” by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp. 753-754, s. 3.

39. Collector's power to refund penalty paid under section 38, sub-section (1).— (1) When a copy of an instrument is sent to the Collector under section 38, sub-section (1), he may, if he thinks fit, ¹[* * * * *], refund any portion of the penalty in excess of ²[five hundred] rupees which has been paid in respect of such instrument.

(2) When such instrument has been impounded only because it has been written in contravention of section 13 or section 14, the Collector may refund the whole penalty so paid.

40. Collector's power to stamp instruments impounded.— ³[(1) When the Collector impounds any instrument under section 33, or receives any instruments sent to him under subsection (2) of section 38, he shall adopt the following procedure:

- (a) if he is of the opinion that the instrument is duly stamped or is not chargeable with duty, he shall certify by endorsement thereon that it is duly stamped, or that it is not so chargeable, as the case may be;
- (b) if he is of the opinion that such instrument is chargeable with duty and is not duly stamped, he shall require the payment of the proper duty or the amount required to make up the same, together with a penalty of maximum ten times the amount of the proper duty or the deficient amount thereof but not less than two times of the amount due:

provided that when such instrument has been impounded only because it has been written in contravention of section 13 or section 14, the Collector may, if he thinks fit, remit the whole penalty provided under this section:

provided further that in case of any purported transfer of right, title or interest in an immoveable property effected by a relevant public office in its record under an instrument which is not registered under the Registration Act, 1908 (XVII of 1908), such instrument shall be chargeable with duty which shall be ten times the amount of the deficient duty.]

(2) Every certificate under clause (a) of sub-section (1) shall, for the purposes of this Act, be conclusive evidence of the matters stated therein.

(3) Where an instrument has been sent to the Collector under section 38, sub-section (2), the Collector shall, when he has dealt with it as provided by this section, return it to the impounding officer.

41. Instruments unduly stamped by accident.— If any instrument chargeable with duty and not duly stamped, not being an instrument chargeable with a duty of ⁴[not exceeding ⁵[fifty rupees]] only or a bill of exchange or promissory note, is produced by any person of his own motion before the Collector within one year from the date of its execution or first

¹The expression "upon application made to him in this behalf or, if no application is made, with the consent of the Chief Controlling Revenue-authority" was omitted by the Decentralization Act, 1914 (IV of 1914), published in the Gazette of India, dated: 28 February 1914, pp. 21-32, s. 2 read with the Schedule.

²Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.14.

³Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.15.

⁴Substituted for the words "of one anna [or half an anna]" by the Stamp (West Pakistan Amendment) Act, 1964 (II of 1964), published in the Gazette of West Pakistan (Extraordinary), dated: 7 March 1964, pp. 711-732, s. 8. The words "or half an anna" were inserted by the Indian Stamp (Amendment) Act, 1906 (V of 1906), published in the Gazette of India, dated: 24 March 1906, pp. 11-12, s. 3.

⁵Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.16.

execution, and such person brings to the notice of the Collector the fact that such instrument is not duly stamped and offers to pay to the Collector the amount of the proper duty, or the amount required to make up the same, and the Collector is satisfied that the omission to duly stamp such instrument has been occasioned by accident, mistake or urgent necessity, he may, instead of proceeding under sections 33 and 40, receive such amount and proceed as next hereinafter prescribed.

42. Endorsement of instruments on which duty has been paid under sections 35, 40 or 41.— (1) When the duty and penalty (if any) leviable in respect of any instrument have been paid under section 35, section 40 or section 41, the person admitting such instrument in evidence or the Collector, as the case may be, shall certify by endorsement thereon that the proper duty or, as the case may be, the proper duty and penalty (stating the amount of each) have been levied in respect thereof, and the name and residence of the person paying them.

(2) Every instrument so endorsed shall thereupon be admissible in evidence, and may be registered and acted upon and authenticated as if it had been duly stamped, and shall be delivered on his application in this behalf to the person from whose possession it came into the hands of the officer impounding it, or as such person may direct:

Provided that—

- (a) no instrument which has been admitted in evidence upon payment of duty and a penalty under section 35, shall be so delivered before the expiration of one month from the date of such impounding, or if the Collector has certified that its further detention is necessary and has not cancelled such certificate:
- (b) nothing in this section shall affect the Code of Civil Procedure¹, section 144, clause 3.

43. Prosecution for offence against Stamp-law.— The taking of proceedings or the payment of a penalty under this Chapter in respect of any instrument shall not bar the prosecution of any person who appears to have committed an offence against the Stamp-law in respect of such instrument:

Provided that no such prosecution shall be instituted in the case of any instrument in respect of which such a penalty has been paid, unless it appears to the Collector that the offence was committed with an intention of evading payment of the proper duty.

44. Persons paying duty or penalty may recover same in certain cases.— (1) When any duty or penalty has been paid under section 35, section 37, section 40 or section 41, by any person in respect of an instrument, and, by agreement or under the provisions of section 29 or any other enactment in force at the time such instrument was executed, some other person was bound to bear the expense of providing the proper stamp for such instrument, the first-mentioned person shall be entitled to recover from such other person the amount of the duty or penalty so paid.

(2) For the purpose of such recovery any certificate granted in respect of such instrument under this Act shall be conclusive evidence of the matters therein certified.

(3) Such amount may, if the Court thinks fit, be included in any order as to costs in any suit or proceeding to which such persons are parties and in which such instrument has been tendered in evidence. If the Court does not include the amount in such order, no further proceedings for the recovery of the amount shall be maintainable.

45. Power to Revenue Authority to refund penalty or excess duty in certain cases.— (1) Where any penalty is paid under section 35 or section 40, the ²[Chief Revenue Authority]

¹XIV of 1884. Now the Code of Civil Procedure, 1908 (V of 1908).

²Substituted for the words "Chief Controlling Revenue-authority" by the Central Laws (Adaption) Order, 1961 (P.O. No. 1 of 1961); made by the Minister exercising the functions of President under Article 2 of the State Arrangements Order, 1959 on 21

may, upon application in writing made within one year from the date of the payment, refund such penalty wholly or in part.

(2) Where, in the opinion of the ¹[Chief Revenue Authority], stamp-duty in excess of that which is legally chargeable has been charged and paid under section 35 or section 40, such authority may, upon application in writing made within three months of the order charging the same, refund the excess.

46. Non-liability for loss of instruments sent under section 38.— (1) If any instrument sent to the Collector under section 38, sub-section (2), is lost, destroyed or damaged during transmission, the person sending the same shall not be liable for such loss, destruction or damage.

(2) When any instrument is about to be so sent, the person from whose possession it came into the hands of the person impounding the same, may require a copy thereof to be made at the expense of such first-mentioned person and authenticated by the person impounding such instrument.

²**[47. Power of payer to stamp bills and promissory notes received by him unstamped.**— When any Bill of Exchange or promissory note is presented for payment unstamped, the person to whom it is so presented may affix thereon the necessary adhesive stamp, and upon cancelling the same in the manner hereinbefore provided, may charge the duty against the person who ought to have paid the same, or deduct it from the sum payable as aforesaid, and such bill or note shall, so far as respects the duty be deemed good and valid:

provided that nothing herein contained shall relieve any person of any penalty or proceeding to which he may be liable in relation to such bill or note.]

48. Recovery of duties and penalties.— All duties, penalties and other sums required to be paid under this ³[Act] may be recovered by the Collector by distress and sale of the movable property of the person from whom the same are due, or by any other process for the time being in force for the recovery of arrears of land-revenue.

⁴**[48A. Power of Collector to seal premises.**— (1) When a transferring or attesting authority fails to comply with the provisions of this Act, the Collector may seal such public office including the premises thereof after affording the transferring or attesting authority an opportunity of being heard.

(2) If the transferring or attesting authority is aggrieved by an order under subsection (1), he may within a period of thirty days of the order, apply to the Chief Revenue Authority, or any officer authorized by it in this behalf, for de-sealing of the public office.

(3) An application under subsection (2) shall not be entertained unless the applicant pays the deficient amount of the duty together with the penalty under this Act.]

January 1961; and, was published in the Gazette of Pakistan (Extraordinary), dated: 24 January 1961, pp. 102-163, Article 2 read with the Schedule: it came into force on 23 March 1956.

¹*Ibid.*

²Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.17. It was earlier Substituted by the Stamp (West Pakistan Amendment) Act, 1964 (II of 1964), published in the Gazette of West Pakistan (Extraordinary), dated: 7 March 1964, pp. 711-732, s. 9.

³Substituted for the word "chapter" by the Stamp (Amendment) Act 2025 (XXXVI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, p.4767 s.3.

⁴Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.18.

CHAPTER V

Allowances for Stamps in Certain Cases

49. Allowance for spoiled stamps.— Subject to such rules as may be made by ¹[the ²[Government]] as to the evidence to be required, or the enquiry to be made the Collector may, on application made within the period prescribed in section 50, and if he is satisfied as to the facts, make allowance for impressed stamps spoiled in the cases hereinafter mentioned, namely:—

- (a) the stamp on any paper inadvertently and undesignedly spoiled, obliterated or by error in writing or any other means rendered unfit for the purpose intended before any instrument written thereon is executed by any person:
- (b) the stamp on any document which is written out wholly or in part, but which is not signed or executed by any party thereto:
- (c) in the case of bills of exchange ³[payable otherwise than on demand] ⁴[*] or promissory notes—
 - (1) the stamp on ⁵[any such bill of exchange] ⁶[* *] signed by or on behalf of the drawer which has not been accepted or made use of in any manner whatever or delivered out of his hands for any purpose other than by way of tender for acceptance: provided that the paper on which any such stamp is impressed, does not bear any signature intended as or for the acceptance of any bill of exchange ⁷[* *] to be afterwards written thereon:
 - (2) the stamp on any promissory note signed by or on behalf of the maker which has not been made use of in any manner whatever or delivered out of his hands:
 - (3) the stamp used or intended to be used for ⁸[any such bill of exchange], ⁹[*] or promissory note signed by, or on behalf of, the drawer thereof, but which from any omission or error has been spoiled or rendered useless, although the same, being a bill of exchange ¹⁰[* *], may have been presented for acceptance or accepted or endorsed, or, being a promissory note, may have been delivered to the payee: provided that another completed and duly stamped bill of exchange, ¹¹[*] or

¹Substituted for the words “the Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule. The words “Local Government” were earlier substituted for the words “Governor General in Council” by the Decentralization Act, 1914 (IV of 1914), published in the Gazette of India, dated: 28 February 1914, pp. 21-32, s. 2 read with the Schedule.

²Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.2. It was earlier substituted for the words “Collecting Government” by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp. 753-754, s. 3.

³Inserted by the Indian Finance Act, 1927 (V of 1927), published in the Gazette of India, dated: 30 March 1927, s. 5: it came into force on 1 July 1927.

⁴The word “cheques” was omitted *ibid*.

⁵Substituted for the words “any bill of exchange” by the Indian Finance Act, 1927 (V of 1927), published in the Gazette of India, dated: 30 March 1927, s. 5: it came into force on 1 July 1927.

⁶The words “or cheque” were omitted *ibid*.

⁷*Ibid*.

⁸Substituted *ibid*., for the words “any bill of exchange”.

⁹The word “cheque” was omitted *ibid*.

¹⁰The words “or cheque” was omitted *ibid*.

¹¹The word “cheque” was omitted *ibid*.

promissory note is produced identical in every particular, except in the correction of such omission

or error as aforesaid, with the spoiled bill,¹[*] or note:

- (d) the stamp used for an instrument executed by any party thereto which—
- (1) has been afterwards found to be absolutely void in law from the beginning:
 - (2) has been afterwards found unfit, by reason of any error or mistake therein, for the purpose originally intended:
 - (3) by reason of the death of any person by whom it is necessary that it should be executed, without having executed the same, or of the refusal of any such person to execute the same, cannot be completed so as to effect the intended transaction in the form proposed:
 - (4) for want of the execution thereof by some material party, and his inability or refusal to sign the same, is in fact incomplete and insufficient for the purpose for which it was intended:
 - (5) by reason of the refusal of any person to act under the same, or to advance any money intended to be thereby secured, or by the refusal or non-acceptance of any office thereby granted, totally fails of the intended purpose:
 - (6) becomes useless in consequence of the transaction intended to be thereby effected being effected by some other instrument between the same parties and bearing a stamp of not less value:
 - (7) is deficient in value and the transaction intended to be thereby effected has been effected by some other instrument between the same parties and bearing a stamp of not less value:
 - (8) is inadvertently and undesignedly spoiled, and in lieu whereof another instrument made between the same parties and for the same purpose is executed and duly stamped:

Provided that, in the case of an executed instrument, no legal proceeding has been commenced in which the instrument could or would have been given or offered in evidence and that the instrument is given up to be cancelled.

Explanation.— The certificate of the Collector under section 32 that the full duty with which an instrument is chargeable has been paid is an impressed stamp within the meaning of this section.

50. Application for relief under section 49 when to be made.— The application for relief under section 49 shall be made within the following periods, that is to say,—

- (1) in the cases mentioned in clause (d) (5), within two months of the date of the instrument:
- (2) in the case of a stamped paper on which no instrument has been executed by any of the parties thereto, within six months after the stamp has been spoiled:
- (3) in the case of a stamped paper in which an instrument has been executed by any of the parties thereto, within six months after the date of the instrument, or, if it is not dated, within six months after the execution thereof by the person by whom it was first or alone executed:

Provided that,—

¹The word "cheque" was omitted by the Indian Finance Act, 1927 (V of 1927), published in the Gazette of India, dated: 30 March 1927, s. 5: it came into force on 1 July 1927.

- (a) when the spoiled instrument has been for sufficient reasons sent out of ¹[Pakistan], the application may be made within six months after it has been received back in ²[Pakistan]:
- (b) when, from unavoidable circumstances, any instrument for which another instrument has been substituted, cannot be given up to be cancelled within the aforesaid period, the application may be made within six months after the date of execution of the substituted instrument.

³**[50-A. Refund of stamp.-** Notwithstanding anything contained in this Act, the Chief Revenue Authority may, within two years from the date on which the stamp was purchased or spoiled or rendered useless, as the case may be, allow refund to a person if he was:

- (a) not in power or possession of such stamp; or
- (b) unable to claim refund due to his detention in jail or admission in hospital; or
- (c) out of the country.]

51. Allowance in case of printed forms no longer required by Corporations.— The ⁴[Chief Revenue Authority] ⁵[or the Collector if empowered by the ⁶[Chief Revenue Authority] in this behalf] may, without limit of time, make allowance for stamped papers used for printed forms of instruments ⁷[by any banker or,] by any incorporated company or other body corporate, if for any sufficient reason such forms have ceased to be required by the said ⁸[banker,] company or body corporate: provided that such authority is satisfied that the duty in respect of such stamped papers has been duly paid.

52. Allowance for misused stamps.— (a) When any person has inadvertently used for an instrument chargeable with duty, a stamp of a description other than that prescribed for such instrument by the rules made under this Act, or a stamp of greater value than was necessary, or has inadvertently used any stamp for an instrument not chargeable with any duty; or

¹Substituted for the words "the Provinces and the Capital of the Federation" by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955. They were earlier substituted for the words "British India" by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. No. 4 of 1949), published in the Gazette of Pakistan (Extraordinary), dated: 28 March 1949, pp. 223-283, Article 3 read with Article 4.

²*Ibid.*

³Inserted by the Stamp (Amendment) Act 2025 (XXXVI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, p.4767 s.4.

⁴Substituted for the words "Chief Controlling Revenue-authority" by the Central Laws (Adaption) Order, 1961 (P.O. No. 1 of 1961); made by the Minister exercising the functions of President under Article 2 of the State Arrangements Order, 1959 on 21 January 1961; and, was published in the Gazette of Pakistan (Extraordinary), dated: 24 January 1961, pp. 102-163, Article 2 read with the Schedule: it came into force on 23 March 1956.

⁵Inserted by the Decentralization Act, 1914 (IV of 1914), published in the Gazette of India, dated: 28 February 1914, pp. 21-32, s. 2 read with the Schedule.

⁶Substituted for the words "Chief Controlling Revenue-authority" by the Central Laws (Adaption) Order, 1961 (P.O. No. 1 of 1961); made by the Minister exercising the functions of President under Article 2 of the State Arrangements Order, 1959 on 21 January 1961; and, was published in the Gazette of Pakistan (Extraordinary), dated: 24 January 1961, pp. 102-163, Article 2 read with the Schedule: it came into force on 23 March 1956.

⁷Inserted by the Indian Stamp (Amendment) Act, 1906 (V of 1906), published in the Gazette of India, dated: 24 March 1906, pp. 11-12, s. 6.

⁸Inserted by the Indian Stamp (Amendment) Act, 1906 (V of 1906), published in the Gazette of India, dated: 24 March 1906, pp. 11-12, s. 6.

- (b) When any stamp used for an instrument has been inadvertently rendered useless under section 15, owing to such instrument having been written in contravention of the provisions of section 13;

the Collector may, on application made within six months after the date of the instrument, or, if it is not dated, within six months after the execution thereof by the person by whom it was first or alone executed, and upon the instrument, if chargeable with duty, being re-stamped with the proper duty, cancel and allow as spoiled the stamp so misused or rendered useless.

53. Allowance for spoiled or misused stamps how to be made.— In any case in which allowance is made for spoiled or misused stamps, the Collector may give in lieu thereof—

- (a) other stamps of the same description and value; or,
(b) if required and he thinks fit, stamps of any other description to the same amount in value; or,
(c) at his discretion, the same value in money, ¹[deducting ten per centum of that value].

54. Allowance for stamps not required for use.— When any person is possessed of a stamp or stamps which have not been spoiled or rendered unfit or useless for the purpose intended, but for which he has no immediate use, the Collector shall repay to such person the value of such stamp or stamps in money, ²[deducting ten per centum of that value] upon such person delivering up the same to be cancelled, and proving to the Collector's satisfaction—

- (a) that such stamp or stamps were purchased by such person with a *bona fide* intention to use them; and
(b) that he has paid the full price thereof; and
(c) that they were so purchased within the period of six months next preceding the date on which they were so delivered:

Provided that, where the person is a licensed vendor of stamps, the Collector may, if he thinks fit, make the repayment of the sum actually paid by the vendor without any such deduction as aforesaid.

55. Allowance on renewal of certain debentures.— When any duly stamped debenture is renewed by the issue of a new debenture in the same terms, the Collector shall, upon application made within one month, repay to the person issuing such debenture the value of the stamp on the original or on the new debenture, whichever shall be less:

Provided that the original debenture is produced before the Collector and cancelled by him in such manner as the ³[Government] may direct.

Explanation.— A debenture shall be deemed to be renewed in the same terms within the meaning of this section notwithstanding the following changes:—

¹Substituted for the words "deducting one anna for each rupee or fraction portion of a rupee" by the Stamp (West Pakistan Amendment) Act, 1964 (II of 1964), published in the Gazette of West Pakistan (Extraordinary), dated: 7 March 1964, pp. 711-732, s. 10.

²*Ibid.*

³ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.2. It was earlier substituted for the words "Governor-General in Council" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

- (a) the issue of two or more debentures in place of one original debenture, the total amount secured being the same;
- (b) the issue of one debenture in place of two or more original debentures, the total amount secured being the same;
- (c) the substitution of the name of the holder at the time of renewal for the name of the original holder; and
- (d) the alteration of the rate of interest or the dates of payment thereof.

CHAPTER VI

Reference and Revision

56. Control of, and statement of case to, ¹[Chief Revenue Authority].— (1) The powers exercisable by a Collector under Chapter IV and Chapter V ²[and under clause (a) of the first proviso to section 26] shall in all cases be subject to the control of the ³[Chief Revenue Authority].

(2) If any Collector, acting under section 31, section 40 or section 41, feels doubt as to the amount of duty with which any instrument is chargeable, he may draw up a statement of the case, and refer it, with his own opinion thereon, for the decision of the ⁴[Chief Revenue Authority].

(3) Such authority shall consider the case and send a copy of its decision to the Collector, who shall proceed to assess and charge the duty (if any) in conformity with such decision.

57. Statement of case by ⁵[Chief Revenue Authority] to High Court.— (1) The ⁶[Chief Revenue Authority] may state any case referred to it under section 56, sub-section (2), or otherwise coming to its notice, and refer such case, with its own opinion thereon,—

⁷[(a) * * * * *]

(b) if the case arises in ⁹[any Province], to the High Court of ¹⁰[the Province].]

¹Substituted for the words "Chief Controlling Revenue-authority" by the Central Laws (Adaption) Order, 1961 (P.O. No. 1 of 1961); made by the Minister exercising the functions of President under Article 2 of the State Arrangements Order, 1959 on 21 January 1961; and, was published in the Gazette of Pakistan (Extraordinary), dated: 24 January 1961, pp. 102-163, Article 2 read with the Schedule: it came into force on 23 March 1956.

²Inserted by the Indian Stamp (Amendment) Act, 1904 (XV of 1904), published in the Government Gazette, Punjab and its Dependencies, dated: 3 November 1904, pp. 45-46, s. 7.

³Substituted for the words "Chief Controlling Revenue-authority" by the Central Laws (Adaption) Order, 1961 (P.O. No. 1 of 1961); made by the Minister exercising the functions of President under Article 2 of the State Arrangements Order, 1959 on 21 January 1961; and, was published in the Gazette of Pakistan (Extraordinary), dated: 24 January 1961, pp. 102-163, Article 2 read with the Schedule: it came into force on 23 March 1956.

⁴Substituted for the words "Chief Controlling Revenue-authority" by the Central Laws (Adaption) Order, 1961 (P.O. No. 1 of 1961); made by the Minister exercising the functions of President under Article 2 of the State Arrangements Order, 1959 on 21 January 1961; and, was published in the Gazette of Pakistan (Extraordinary), dated: 24 January 1961, pp. 102-163, Article 2 read with the Schedule: it came into force on 23 March 1956.

⁵*Ibid.*

⁶*Ibid.*

⁷Substituted for clauses (a), (b) and (c) by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955.

⁸Deleted by the Punjab Laws (Adaptation) Order, 1974 (P.O. No.1 of 1974), published in the Punjab Gazette (Extraordinary), dated: 20 November 1974, pp. 1425-A to 1425-PP, Article 2 read with the Schedule: it came into force on 14 August 1973.

⁹Substituted *ibid.*, for the words "West Pakistan".

¹⁰*Ibid.*

(2) Every such case shall be decided by not less than three Judges of the High Court ¹[* * *] to which it is referred, and in case of difference the opinion of the majority shall prevail.

58. Power of High Court ²[* * *] to call for further particulars as to case stated.— If the High Court ³[* * *] is not satisfied that the statements contained in the case are sufficient to enable it to determine the questions raised thereby, the Court may refer the case back to the Revenue-authority by which it was stated, to make such additions thereto or alterations therein as the Court may direct in that behalf.

59. Procedure in disposing of case stated.— (1) The High Court ⁴[* * *], upon the hearing of any such case, shall decide the questions raised thereby, and shall deliver its judgment thereon containing the grounds on which such decision is founded.

(2) The Court shall send to the Revenue-authority by which the case was stated a copy of such judgment under the seal of the Court and the signature of the Registrar; and the Revenue-authority shall, on receiving such copy, dispose of the case conformably to such judgment.

60. Statement of case by other Courts to High Court ⁵[* * *].— (1) If any Court, other than a Court mentioned in section 57, feels doubt as to the amount of duty to be paid in respect of any instrument under proviso (a) to section 35, the Judge may draw up a statement of the case and refer it, with his own opinion thereon, for the decision of the High Court ⁶[* * *] to which, if he were the ⁷[Chief Revenue Authority], he would, under section 57, refer the same.

(2) Such Court shall deal with the case as if it had been referred under section 57, and send a copy of its judgment under the seal of the Court and the signature of the Registrar to the ⁸[Chief Revenue Authority] and another like copy to the Judge making the reference, who shall, on receiving such copy, dispose of the case conformably to such judgment.

(3) References made under sub-section (1), when made by a Court subordinate to a District Court, shall be made through the District Court, and, when made by any subordinate Revenue Court, shall be made through the Court immediately superior.

61. Revision of certain decisions of Courts regarding the sufficiency of stamps.— (1) When any Court in the exercise of its civil or revenue jurisdiction or any Criminal Court in any proceedings under Chapter XII or Chapter XXXVI of the Code of Criminal Procedure, 1898⁹, makes any order admitting any instrument in evidence as duly stamped or as not

¹The words "or Chief Court" were omitted by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955.

²*Ibid.*

³*Ibid.*

⁴The words "or Chief Court" were omitted by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960); assented to by the President on 7 June 1960; and, was published in the Gazette of Pakistan (Extraordinary), dated: 9 June 1960, pp. 725-845, s. 3 read with the Second Schedule: it came into force on 14 October 1955.

⁵*Ibid.*

⁶*Ibid.*

⁷Substituted for the words "Chief Controlling Revenue-authority" by the Central Laws (Adaption) Order, 1961 (P.O. No. 1 of 1961); made by the Minister exercising the functions of President under Article 2 of the State Arrangements Order, 1959 on 21 January 1961; and, was published in the Gazette of Pakistan (Extraordinary), dated: 24 January 1961, pp. 102-163, Article 2 read with the Schedule: it came into force on 23 March 1956.

⁸*Ibid.*

⁹V of 1898.

requiring a stamp, or upon payment of duty and a penalty under section 35, the Court to which appeals lie from, or references are made by, such first-mentioned Court may, of its own motion or on the application of the Collector, take such order into consideration.

(2) If such Court, after such consideration, is of opinion that such instrument should not have been admitted in evidence without the payment of duty and penalty under section 35 or without the payment of a higher duty and penalty than those paid, it may record a declaration to that effect, and determine the amount of duty with which such instrument is chargeable, and may require any person in whose possession or power such instrument then is, to produce the same, and may impound the same when produced.

(3) When any declaration has been recorded under sub-section (2), the Court recording the same shall send a copy thereof to the Collector, and, where the instrument to which it relates has been impounded or is otherwise in the possession of such Court, shall also send him such instrument.

(4) The Collector may thereupon, notwithstanding anything contained in the order admitting such instrument in evidence, or in any certificate granted under section 42, or in section 43, prosecute any person for any offence against the Stamp-law which the Collector considers him to have committed in respect of such instrument:

Provided that—

- (a) no such prosecution shall be instituted where the amount (including duty and penalty) which, according to the determination of such Court, was payable in respect of the instrument under section 35, is paid to the Collector, unless he thinks that the offence was committed with an intention of evading payment of the proper duty;
- (b) except for the purposes of such prosecution, no declaration made under this section shall affect the validity of any order admitting any instrument in evidence, or of any certificate granted under section 42.

CHAPTER VII

Criminal Offences and Procedure

62. Penalty for executing, etc., instrument not duly stamped.— (1) Any person—

- (a) drawing, making, issuing, endorsing or transferring, or signing otherwise than as a witness, or presenting for acceptance or payment, or accepting, paying or receiving payment of, or in any manner negotiating, any bill of exchange ¹[payable otherwise than on demand], ²[*] or promissory note without the same being duly stamped; or
- (b) executing or signing otherwise than as a witness any other instrument chargeable with duty without the same being duly stamped; or
- (c) voting or attempting to vote under any proxy not duly stamped;

shall for every such offence be punishable with fine which ³[shall be equal to two times of the unpaid duty]:

Provided that, when any penalty has been paid in respect of any instrument under section 35, section 40 or section 61, the amount of such penalty shall be allowed in

¹Inserted by the Indian Finance Act, 1927 (V of 1927), published in the Gazette of India, dated: 30 March 1927, s. 5: it came into force on 1 July 1927.

²The word "cheque" was omitted *ibid*.

³ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.19.

reduction of the fine (if any) subsequently imposed under this section in respect of the same instrument upon the person who paid such penalty.

(2) If a share-warrant is issued without being duly stamped, the company issuing the same, and also every person who, at the time when it is issued, is the managing director or secretary or other principal officer of the company, shall be punishable with fine which may extend to ¹[one thousand] rupees.

63. Penalty for failure to cancel adhesive stamp.— Any person required by section 12 to cancel an adhesive stamp, and failing to cancel such stamp in manner prescribed by that section, shall be punishable with fine which may extend to ²[five hundred] rupees.

³**64. Penalty or omission to comply with provisions of section 27.**— Any person who, with intent to defraud the Government—

(a) executes any instrument in which all the facts and circumstances required by section 27 to be set forth in such instrument are not fully and truly set forth; or

(b) being employed or concerned in or about the preparation of any instrument, neglects or omits fully and truly to set forth therein all such facts and circumstances; shall be punishable with fine which may extend to one hundred thousand rupees; or

(c) does any other act calculated to deprive the Government of any duty or penalty under this Act shall be punishable with fine equal to five times the amount of duty or penalty but shall not be less than one hundred thousand rupees.]

⁴**64A. Punishment for omission to comply with the provision of the Act.**— Any transferring or attesting authority which willfully and dishonestly fails to comply with any of the provisions of the Act shall be punishable with imprisonment for a term which may extend to six months or with fine which may extend to five hundred thousand rupees, or with both.]

65. Penalty for refusal to give receipt, and for devices to evade duty on receipts.— Any person who—

(a) being required under section 30 to give a receipt, refuses or neglects to give the same; or,

(b) with intent to defraud the Government of any duty, upon a payment of money or delivery of property exceeding twenty rupees in amount or value, gives a receipt for an amount or value not exceeding twenty rupees, or separates or divides the money or property paid or delivered;

shall be punishable with fine which may extend to ⁵[five hundred] rupees.

¹*Ibid.*

Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.17.

² Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.20.

³ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.21.

⁴ Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.22.

⁵Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s. 23.

66. Penalty for not making out policy or making one not duly stamped.— Any person who—

- (a) receives, or takes credit for, any premium or consideration for any contract of insurance and does not, within one month after receiving, or taking credit for, such premium or consideration, make out and execute a duly stamped policy of such insurance; or
- (b) makes, executes or delivers out any policy which is not duly stamped, or pays or allows in account, or agrees to pay or allow in account, any money upon, or in respect of, any such policy;

shall be punishable with fine which may extend to ¹[one thousand] rupees.

67. Penalty for not drawing full number of bills or marine policies purporting to be in sets.— Any person drawing or executing a bill of exchange ²[payable otherwise than on demand] or a policy of marine insurance purporting to be drawn or executed in a set of two or more, and not at the same time drawing or executing on paper duly stamped the whole number of bills or policies of which such bill or policy purports the set to consist, shall be punishable with fine which may extend to ³[five thousand] rupees.

68. Penalty for post-dating bills, and for other devices to defraud the revenue.— Any person who—

- (a) with intent to defraud the Government of duty, draws, makes or issues any bill of exchange or promissory note bearing a date subsequent to that on which such bill or note is actually drawn or made; or,
- (b) knowing that such bill or note has been so post-dated, endorses, transfers, presents for acceptance or payment, or accepts, pays or receives payment of, such bill or note, or in any manner negotiates the same; or,
- (c) with the like intent, practises or is concerned in any act, contrivance or device not specially provided for by this Act or any other law for the time being in force;

shall be punishable with fine which ⁴[shall be equal to five times the amount of the unpaid duty subject to a minimum of twenty five thousand rupees.]

69. Penalty for breach of rule relating to sale of stamps and for unauthorized sale.—

- (a) Any person appointed to sell stamps who disobeys any rule made under section 74, and
- ⁵[(b) any person, not so appointed, who sells or offers for sale any stamp shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to one hundred thousand rupees;]

¹Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.24.

²Inserted by the Indian Finance Act, 1927 (V of 1927), published in the Gazette of India, dated: 30 March 1927, s. 5: it came into force on 1 July 1927.

³ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.25. It was earlier substituted for the words "one thousand" by the Punjab Finance Act, 1996 (V of 1996), published in the Punjab Gazette (Extraordinary), dated: 26 June 1996, pp. 215-219, s. 3: it came into force on 1 July 1996.

⁴ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.26.

⁵ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.27.

shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to ¹[one thousand] rupees, or with both.

70. Institution and conduct of prosecutions.— (1) No prosecution in respect of any offence punishable under this Act or any Act hereby repealed, shall be instituted without the sanction of the Collector or such other officer as ²[the ³[Government]] generally, or the Collector specially, authorizes in that behalf.

(2) The ⁴[Chief Revenue Authority], or any officer generally or specially authorized by it in this behalf, may stay any such prosecution or compound any such offence.

(3) The amount of any such composition shall be recoverable in the manner provided by section 48.

⁵**[71. Jurisdiction of Magistrates.**— A Magistrate of competent jurisdiction shall try an offence under this Act.]

72. Place of trial.— Every such offence committed in respect of any instrument may be tried in any district ⁶[* *] in which such instrument is found, as well as in any district ⁷[* *] in which such offence might be tried under the Code of Criminal Procedure for the time being in force.

CHAPTER VIII Supplemental Provisions

73. Books, etc., to be open to inspection.— ⁸[(1) Every public officer shall, whenever his business involves an instrument chargeable with duty under this Act, keep and maintain such registers, books, records, papers, documents or proceedings relating to payment of that duty in such form as prescribed by the Board of Revenue and furnish a monthly statement of payment to the Collector.

(2)] Every public officer having in his custody any registers, books, records, papers, documents or proceedings, the inspection whereof may tend to secure any duty, or to prove or lead to the discovery of any fraud or omission in relation to any duty, shall at all reasonable times permit any person authorized in writing by the ⁹[Board of Revenue or]

¹Substituted for the words "five hundred" by the Punjab Finance Act, 1996 (V of 1996), published in the Punjab Gazette (Extraordinary), dated: 26 June 1996, pp. 215-219, s. 3: it came into force on 1 July 1996.

²Substituted for the words "the Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

³ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.2. It was earlier Substituted for the words "Collecting Government" by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp. 753-754, s.3.

⁴Substituted for the words "Chief Controlling Revenue-authority" by the Central Laws (Adaption) Order, 1961 (P.O. No. 1 of 1961); made by the Minister exercising the functions of President under Article 2 of the State Arrangements Order, 1959 on 21 January 1961; and, was published in the Gazette of Pakistan (Extraordinary), dated: 24 January 1961, pp. 102-163, Article 2 read with the Schedule: it came into force on 23 March 1956.

⁵Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.28.

⁶The words "or Presidency-town" were repealed by the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951), published in the Gazette of Pakistan (Extraordinary), dated: 12 May 1951, pp. 340-388, s. 3 read with the Second Schedule.

⁷*Ibid.*

⁸Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.29.

⁹Substituted by the Stamp (Amendment) Act 2025 (XXXVI of 2025), published in the Punjab Gazette (Extraordinary), dated: 30 May 2025, p.4767 s.5.

Collector to inspect for such purpose the registers, books, papers, documents and proceedings, and to take such notes and extracts as he may deem necessary, without fee or charge.

74. Powers to make rules relating to sale of stamps.— The ¹[Government], ²[* * * * *], may make rules for regulating—

- (a) the supply and sale of stamps and stamped papers,
- (b) the persons by whom alone such sale is to be conducted, and
- (c) the duties and remuneration of such persons³].

⁴[* * * * *]

⁵**75. Power to make rules.**— The Government may make rules to carry out the purposes of this Act.]

76. Publication of rules.— ⁶[(1) All rules made under this Act shall be published in the Official Gazette.]

(2) All rules published as required by this section shall, upon such publications, have effect as if enacted by this Act.

⁷**76A. Delegation of certain powers.**— ⁸[The ⁹[* * * * *]] ¹⁰[Government], may by notification in the Official Gazette], delegate—

- (a) all or any of the powers conferred on it by sections 2 (9), 33 (3) (b), 70 (1), 74 and 78 to the ¹¹[Chief Revenue Authority]; and

¹ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.2. It was earlier substituted for the words "Collecting Government" by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp. 753-754, s. 3. They were earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

²The words "subject to the control of the Governor General in Council" were omitted by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

³ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s. 30.

⁴ Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s. 30.

⁵ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s. 31.

⁶Substituted by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

⁷Inserted by the Decentralization Act, 1914 (IV of 1914), published in the Gazette of India, dated: 28 February 1914, pp. 21-32, s. 2 read with the Schedule.

⁸Substituted for the words "The Local Government may, by notification in the local Official Gazette" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 3 read with the First Schedule.

⁹The expression "Central Government, subject to the provisions of section 124(1) of the Government of India Act, 1935, and the" was omitted by the Stamp (West Pakistan Amendment) Ordinance, 1959 (XLVI of 1959), published in the Gazette of West Pakistan (Extraordinary), dated: 15 August 1959, pp.753-754, s.7.

¹⁰ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.2.

¹¹Substituted for the words "Chief Controlling Revenue-authority" by the Central Laws (Adaption) Order, 1961 (P.O. No. 1 of 1961); made by the Minister exercising the functions of President under Article 2 of the State Arrangements Order, 1959 on 21 January 1961; and, was published in the Gazette of Pakistan (Extraordinary), dated: 24 January 1961, pp. 102-163, Article 2 read with the Schedule: it came into force on 23 March 1956.

- (b) all or any of the powers conferred on the ¹[Chief Revenue Authority] by sections 45 (1) (2), 56 (1) and 70 (2) to such subordinate Revenue-authority as may be specified in the notification.]

77. Saving as to court-fees.— Nothing in this Act contained shall be deemed to affect the duties chargeable under any enactment for the time being in force relating to court-fees.

78. Act to be translated and sold cheaply.— ²[The] ³[Government] shall make provision for the sale of translations of this Act in the principal vernacular languages of the territories administered by it at a price not exceeding ⁴[twenty-five paise] per copy.

⁵[**79. Repeal.**— * * * * *]

¹Substituted for the words "Chief Controlling Revenue-authority" by the Central Laws (Adaption) Order, 1961 (P.O. No. 1 of 1961); made by the Minister exercising the functions of President under Article 2 of the State Arrangements Order, 1959 on 21 January 1961; and, was published in the Gazette of Pakistan (Extraordinary), dated: 24 January 1961, pp. 102-163, Article 2 read with the Schedule: it came into force on 23 March 1956.

²Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s. 32.

³Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.2. It was earlier substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated: 1 April 1937, pp. 75-344, Article 4 read with the Table of General Adaptations.

⁴Substituted for the words "four annas" by the Stamp (West Pakistan Amendment) Act, 1964 (II of 1964), published in the Gazette of West Pakistan (Extraordinary), dated: 7 March 1964, pp. 711-732, s. 12.

⁵Repealed by the Repealing and Amending Act, 1914 (X of 1914), published in the Gazette of India, dated: 21 March 1914, pp. 47- 59, s. 3 read with the Second Schedule.

¹[**SCHEDULE I**
Stamp-Duty on Instruments
(See Section 3)]

	<i>Description of Instrument</i>	<i>Proper Stamp-duty</i>
1.	² [ACKNOWLEDGMENT of a debt exceeding twenty rupees in amount or value, written or signed by, or on behalf of, a debtor in order to supply evidence of such debt in any book other than a banker's pass-book or on a separate piece of paper when such book or paper is left in the creditor's possession: Provided that such acknowledgment does not contain any promise to pay the debt or any stipulation to pay interest or to deliver any goods or other property-	
	(a) where such amount does not exceed ten thousand rupees.	Ten rupees
	(b) where such amount exceeds ten thousand rupees but does not exceed twenty thousand rupees.	Twenty rupees
	(c) where such amount exceeds twenty thousand rupees.	Fifty rupees.]
2.	ADMINISTRATION BOND , including a bond given under sections 291, 375 and 376 of the Succession Act 1925 ³ , section 6 of the Government Savings Banks Act, 1873 ⁴ –	
	⁵ [* * * * *]	⁶ [* * * * *]
	⁷ [* * * * *]	⁸ [One hundred] rupees.

¹Substituted by the West Pakistan Finance Ordinance, 1969 (VII of 1969), published in the Gazette of West Pakistan (Extraordinary), dated: 30 June 1969, pp. 1007-1050, s.7 read with the Fifth Schedule: it came into force on 1 July 1969. This Ordinance was saved by Article 281 of the Interim Constitution of the Islamic Republic of Pakistan, 1972 and validated by the Validation of Laws Act, 1975 (LXIII of 1975). It was earlier substituted by the Stamp (West Pakistan Amendment) Act, 1964 (II of 1964), published in the Gazette of West Pakistan (Extraordinary), dated: 7 March 1964, pp. 711-732, s. 13.

²Substituted by the Punjab Finance Act 2018 (XXX of 2018), published in the Punjab Gazette (Extraordinary), dated: 29 October 2018, pp. 805-818, s. 2: it came into force on 1 November 2018.

³XXXIX of 1925.

⁴V of 1873.

⁵Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s. 33.

⁶Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s. 33.

⁷Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s. 33.

⁸Substituted for the word "Fifty" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995. The word "Fifty" was earlier substituted for the word "Thirty" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

	Description of Instrument	Proper Stamp-duty
		¹ [Note: In case of registration of the instrument, an additional stamp duty of Rs. 25/- shall be charged.]
3.	ADOPTION-DEED , that is to say, any instrument (other than a will) recording an adoption or conferring or purporting to confer an authority to adopt.	² [One hundred] rupees.
	ADVOCATE, See ENTRY AS AN ADVOCATE (No. 30).	³ [Note: In case of registration of the instrument, an additional stamp duty of Rs.10/- shall be charged.]
4.	AFFIDAVIT , including an affirmation or declaration in the case of persons by law	⁴ ⁵ [[Three] hundred rupees].
	allowed to affirm or declare instead of swearing	
	EXEMPTIONS	
	Affidavit or declaration in writing when made—	
	(a) as a condition of enrolment under the Indian Army Act, 1911 ⁶ , or the Pakistan Army Act, 1952 ⁷ or the Indian Air Force Act, 1932 ⁸ , or the Pakistan Air Force Act, 1953 ⁹ ;	
	(b) for the immediate purpose of being filed or used in any Court or before the officer of any Court; or	
	(c) for the sole purpose of enabling any person to receive any pension or charitable allowance.	

¹Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

²Substituted for the word "Fifty" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

³Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

⁴Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s. 33.

into force on 1 July 2014. The word "Twenty" was earlier substituted for the word "Ten" by the Punjab Finance Act 1998 (VII of 1998), published in the Punjab Gazette (Extraordinary), dated: 30 June 1998, pp.1577-1580, s. 2: it came into force on 1 July 1998. The word "Ten" was earlier substituted for the word "Five" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995. The word "Five" was earlier substituted for the word "Four" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

⁵Substituted for the word "One" by the Punjab Finance Act 2024 (VIII of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 June 2024, pp. 4999-5005, s. 3(a).

⁶VII of 1911.

⁷XXIX of 1952.

⁸XIV of 1932.

⁹VI of 1953.

	Description of Instrument	Proper Stamp-duty
5.	AGREEMENT OR MEMORANDUM OF AN AGREEMENT–	
	(a) if relating to the sale of a bill of exchange;	¹ [Two] rupee.
	(b) if relating to the sale of a Government security;	² [One rupee] for every Rs.10,000 or part thereof of the value of the security, ³ [subject to a maximum of one hundred rupees] ⁴ [but shall not be less than one hundred rupees.]
	(c) if relating to the sale of a share in an incorporated company or other body corporate;	⁵ [One rupee] for every Rs. 5,000 or part thereof of the value of the share.
	⁶ [(cc) if relating to the sale of immovable property	⁷ ⁸ [Three thousand] rupees]]
	⁹ [(ccc) for collection or recovery of octroi or goods exit tax or tax on transfer of immovable property by a contractor with a Local Council.	Fifty paise for every one hundred rupees or part thereof of the amount of the contract] ¹⁰ [but shall not be less than one hundred rupees.]
	(d) if not otherwise provided for	¹¹ ¹² [Five] hundred] rupees.
	EXEMPTIONS	
	Agreement or Memorandum of an Agreement–	
	(a) for or relating to the purchase of or sale of goods or merchandise exclusively, not being a NOTE OR MEMORANDUM chargeable under No. 43;	

¹Substituted for the word “One” by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

²Substituted for the words “Fifty paise” by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

³*Ibid.*, for the words “subject to a maximum of fifty rupees”.

⁴Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

⁵*Ibid.*, for the words “Twenty-five paise”.

⁶Added *ibid.*

⁷Substituted for the words “One hundred rupees” by the Punjab Finance Act 2014 (XVII of 2014), published in the Punjab Gazette (Extraordinary), dated: 26 June 2014, pp.4169-4178, s. 2: it came into force on 1 July 2014. The words “One hundred” were earlier substituted for the word “Fifty” by the Punjab Finance Act 1998 (VII of 1998), published in the Punjab Gazette (Extraordinary), dated: 30 June 1998, pp.1577-1580, s. 2: it came into force on 1 July 1998.

⁸Substituted for the words “Twelve hundred” by the Punjab Finance Act 2024 (VIII of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 June 2024, pp. 4999-5005, s. 3(b)(i).

⁹Added by the Punjab Finance Act 1997 (IX of 1997), published in the Punjab Gazette (Extraordinary), dated 1 July 1997, pp. 1011-1014, s. 2: it came into force on the same day.

¹⁰Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

¹¹Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

¹²Substituted for the word “One” by the Punjab Finance Act 2024 (VIII of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 June 2024, pp. 4999-5005, s. 3(b)(ii).

	Description of Instrument	Proper Stamp-duty
	(b) made in the form of tenders to the ¹ [Federal Government] for or relating to any loan.	
	AGREEMENT TO LEASE, see LEASE (No. 35).	² [Note: In case of registration of the instrument, an additional stamp duty at the rate of 0.1% shall be charged.]
³ [6.	AGREEMENT RELATING TO DEPOSIT OF TITLE DEEDS, PAWN OR PLEDGE , that is to say, any instrument evidencing an agreement relating to–	
	(1) the deposit of title-deeds or instruments constituting or being evidence of the title to any property whatever (other than marketable security), or	
	(2) the pawn or pledge of movable property, where such deposit, pawn or pledge has been made by way of security for the re-payment of money	
	advanced or to be advanced by way of loan or an existing or future debt–	
	(a) if such loan or debt is repayable on demand or more than three months from the date of the instrument evidencing the agreement;	
	(i) in the case of banking companies or other financial institutions, when the entire finance is not based on interest; and	One-fifth of one percent, that is to say, 0.2% of the loan amount ⁴ [but shall not be less than One hundred rupees] subject to a maximum of ⁵ [five hundred thousand] rupees ⁶ [but shall not be less than One hundred rupees].

¹Substituted for the words "Central Government" by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), published in the Gazette of Pakistan (Extraordinary), dated 1 August 1975, pp. 435-467, Article 2 read with the Table of General Adaptations.

²Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

³Substituted by the Punjab Finance Act, 2006 (V of 2006), published in the Punjab Gazette (Extraordinary), dated: 30 June 2006, pp.5027-5029, s. 3: it came into force on 1 July 2006.

⁴Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33.

⁵Substituted for the words "one hundred thousand" by the Punjab Finance Act 2019 (XV of 2019), published in the Punjab Gazette (Extraordinary), dated: 28 June 2019, pp. 4105-4114, s. 2: it came into force on 1 July 2019.

⁶Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33.

	Description of Instrument	Proper Stamp-duty
	(ii) in any other case.	One-fifth of one percent, that is to say, 0.2% of the loan amount ¹ [but shall not be less than One hundred rupees.]
	(b) if such loan or debt is repayable not more than three months from the date of such instrument;	
	(i) in the case of banking companies or other financial institutions, when the entire finance is not based on interest; and	One-tenth of one percent, that is to say, 0.1% of the loan amount ² [but shall not be less than One hundred rupees], subject to a maximum of ³ [five hundred thousand] rupees ⁴ [but shall not be less than One hundred rupees.]
	(ii) in any other case.	One-tenth of one percent, that is to say, 0.1% of the loan amount ⁵ [but shall not be less than One hundred rupees.]
		⁶ [Note: In case of registration of the instrument, an additional stamp duty at the rate of 0.1% shall be charged.]
7.	APPOINTMENT IN EXECUTION OF A POWER where made by any writing not being a will–	
	(a) of trustees	⁷ [One hundred] rupees.
	(b) of property, movable or immovable	⁸ [One hundred] rupees.

¹Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

²Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

³*Ibid.* for the words “fifty thousand”.

⁴Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

⁵Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

⁶Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

⁷Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33. It was earlier substituted for the words “Thirty-five” by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

⁸*Ibid.*, for the word “Seventy”.

	Description of Instrument	Proper Stamp-duty
8.	APPRAISEMENT OR VALUATION made otherwise than under an order of the Court in the course of a suit—	
	(a) ¹ [* * * * *]	² [* * * * *].
	(b) ³ [* * * * *]	⁴ [* * * * *].
	EXEMPTIONS	
	(a) Appraisal of valuation made for the information of one party only, and not being in any manner obligatory between parties either by agreement or operation of law.	
	(b) Appraisal of crop for the purpose of ascertaining the amount	
	to be given to a landlord as rent.	
9.	APPRENTICESHIP-DEED , including every writing relating to the service or tuition of any apprentice, clerk or servant, placed with any master to learn any profession, trade or employment not being ARTICLES OF CLERKSHIP (No. 11) .	⁵ [One hundred] rupees.
	EXEMPTION	
	Instrument of apprenticeship executed by a Magistrate under the Apprentices Act, 1850 ⁶ , or by which a person is apprenticed by or at the charge of any public charity.	
⁷ [10.	ARTICLES OF ASSOCIATION OF A COMPANY* * *****	*****]
11.	ARTICLES OF CLERKSHIP OR contract whereby any person first becomes bound to serve as a clerk in order to his admission as an attorney in any High Court. ASSIGNMENT , See CONVEYANCE (No. 23), TRANSFER (No. 62) and TRANSFER OF LEASE (No. 63), as the case may be.	¹ [Seven hundred and fifty] rupees.

¹Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

²Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

³Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

⁴Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33. It was earlier, *ibid.*, for the word "fifty". The word "Fifty" was earlier substituted for the word "Thirty" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

⁵Substituted for the word "Fifty" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995. The word "Fifty" was earlier substituted for the word "Twenty-five" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

⁶XIX of 1850.

⁷Deleted by the Punjab Finance Act, 2004 (XIX of 2004), published in the Punjab Gazette (Extraordinary), dated: 30 June 2004, pp.1989-1992, s.2; it came into force on 1 July 2004.

	Description of Instrument	Proper Stamp-duty
	ATTORNEY. See ENTRY AS AN ATTORNEY (No. 30), and POWER OF ATTORNEY (No. 48). AUTHORITY TO ADOPT, See ADOPTION-DEED (No. 3).	
² [11-A]	AIR TICKETS issued by any Airline—	
	(i) for domestic flights;	Twenty five rupees per ticket
	(ii) for international flights.	Two hundred and fifty rupees per ticket]
³ [11-B]	AUTHENTICATED DECLARATIONS that is to say declarations of newspapers, periodicals or printing presses authenticated by a legally competent authority.	Five thousand rupees per Declaration.]
	EXPLANATION I.— The duty shall be paid by the declarant. EXPLANATION II.— The declaration shall not be authenticated unless the duty is paid.	
12.	AWARD, that is to say, any decision in writing by an arbitrator or umpire, not being an award directing a partition, on a reference made otherwise than by an order of	⁴ [⁵ [Three percent] of] the amount or value of the property to which the award relates as set forth
	the Court in the course of a suit.	in such award ⁶ [*****].
⁷ [12-A]	*****	*****]
⁸ [12-B]	*****	*****]
13.	BILL OF EXCHANGE as defined by section 2(2) not being BOND , bank note or currency note—	

¹Substituted for the words "Five hundred" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

²Added by the Punjab Finance Act 1997 (IX of 1997), published in the Punjab Gazette (Extraordinary), dated 1 July 1997, pp. 1011-1014, s. 2: it came into force on the same day.

³Added by the Punjab Finance Act 1998 (VII of 1998), published in the Punjab Gazette (Extraordinary), dated: 30 June 1998, pp.1577-1580, s. 2: it came into force on 1 July 1998.

⁴Substituted for the words "Three rupees for every one hundred rupees or part thereof for" by the Punjab Finance Act, 2004 (XIX of 2004), published in the Punjab Gazette (Extraordinary), dated: 30 June 2004, pp.1989-1992, s.2; it came into force on 1 July 2004. The words "Three rupees for every one hundred rupees or part thereof" were earlier substituted for the words "The same duty as on a Bond (No. 15)" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

⁵Substituted for the words "Two percent" by the Punjab Finance Act 2014 (XVII of 2014), published in the Punjab Gazette (Extraordinary), dated: 26 June 2014, pp.4169-4178, s. 2: it came into force on 1 July 2014.

⁶The words "subject to a maximum of fifty rupees" were omitted by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

⁷Deleted by the Punjab Finance Ordinance, 2000 (III of 2000), published in the Punjab Gazette (Extraordinary), dated: 30 June 2000, pp. 587-595, s. 2: it came into force on 1 July 2000: the said Ordinance was saved under Article 270AA of the Constitution of the Islamic Republic of Pakistan, as substituted by the Constitution (Eighteenth Amendment) Act, 2010 (X of 2010), published in the Gazette of Pakistan (Extraordinary), dated: 20 April 2010, pp. 267-316, s. 96. Added by the Punjab Finance Act 1997 (IX of 1997), published in the Punjab Gazette (Extraordinary), dated 1 July 1997, pp. 1011-1014, s. 2: it came into force on the same day.

⁸*Ibid.*

	Description of Instrument	Proper Stamp-duty
	¹ [(a) where payable otherwise than on demand but not more than one year after date or sight–	
	(i) if drawn singly	two rupees for every one thousand rupees or part thereof of the amount of the Bill ² [but shall not be less than one hundred rupees]
	(ii) if drawn in set of two or more, for each part of the set	one rupee for every one thousand rupees or part thereof of the amount of the Bill] ³ [but shall not be less than one hundred rupees]
	(b) where payable more than one year after date or sight.	
	⁴ [If drawn singly	Three rupees for every one thousand rupees or part thereof of the amount of the Bill ⁵ [but shall not be less than one hundred rupees]
	If drawn in set of two, for each part of the set	Two rupees for every one thousand rupees or part thereof of the amount of the Bill ⁶ [but shall not be less than one hundred rupees]
	If drawn in set of three, for each part of the set	one rupee for every one thousand rupees or part thereof of the amount of the Bill] ⁷ [but shall not be less than one hundred rupees]

¹Substituted by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

²Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

³Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

⁴Substituted for the words "One half of the duty payable on a Bond (No. 15) for the same amount" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

⁵Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

⁶Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

⁷Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

	Description of Instrument	Proper Stamp-duty
14.	BILL OF LADING (including a through bill of lading). <i>Note</i> – If a bill of lading is drawn in parts, the proper stamp therefor must be borne by each one of the sets.	¹ [One hundred rupees].
	EXEMPTIONS–	
	(a) Bill of lading when the goods therein described are received at a place within the limits of any port as defined under the Ports Act, 1908 ² , and are to be delivered at another place within the limits of the same port.	
	(b) Bill of lading when executed out of Pakistan and relating to property to be delivered in Pakistan.	
³ [15.	BOND as defined by section 2(5) not being a DEBENTURE (No. 27) and not being otherwise provided for by this Act, or by the Court Fees Act, 1870–	
	(i) where the amount or value secured does not exceed five hundred rupees	Fifteen rupees ⁴ [but shall not less than one hundred rupees]
	(ii) where it exceeds five hundred rupees, for every additional amount of five hundred rupees or part thereof	Fifteen rupees] ⁵ [but shall not less than one hundred rupees]
	See ADMINISTRATION BOND (No.2), BOTTOMERY BOND (No.16), CUSTOMS BOND (No.26).	
	INDEMNITY BOND (No.34), RESPONDENTIA BOND (No.56), SECURITY BOND (No.57).	
	<i>Exemption</i>	
	Bond when executed by any person for the purpose of guaranteeing that the local income derived from private subscription to a Charitable dispensary or hospital or any other object of public utility shall not be less than a specified sum per mensem.	⁶ [Note: In case of registration of the instrument, an additional stamp duty of Rs.25/- shall be charged.]

¹Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

²XV of 1908.

³Substituted by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

⁴Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

⁵Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

⁶Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

	Description of Instrument	Proper Stamp-duty
16.	BOTTOMERY BOND , that is to say, any instrument where by the master of a seagoing ship borrows money on the security of the ship to enable him to preserve the ship or prosecute her voyage.	The same duty as on a bond (No. 15) for the same amount. ¹ [Note: In case of registration of the instrument, an additional stamp duty of Rs.25/- shall be charged.]
17.	CANCELLATION , instrument of (including any instrument by which any instrument previously executed is cancelled), if attested and not otherwise provided for. See also RELEASE (No. 55), REVOCATION OF SETTLEMENT (No. 58-B), SURRENDER OF LEASE (No. 61), REVOCATION OF TRUST (No. 64-B) .	² ³ [Five] hundred rupees].
⁴ [18.	⁵ [CERTIFICATE OF SALE (in respect of each property put up as a separate lot and sold) granted to the purchaser of any property sold by public auction by a Civil or Revenue Court, or Collector or other Revenue Officer:	
	a) in case of immovable property in an urban area; and b) in any other case.	⁶ [Two] percent of the value of the property. Three percent of the value of the property. NOTE: In case of registration of the instrument, an additional stamp duty shall be charged as under:

¹*Ibid.*

²Substituted for the words "Fifty rupees" by the Punjab Finance Act 2014 (XVII of 2014), published in the Punjab Gazette (Extraordinary), dated: 26 June 2014, pp.4169-4178, s. 2: it came into force on 1 July 2014. The word "Fifty" was earlier substituted for the word "Twenty" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995. The word "Twenty" was earlier substituted for the word "Fifteen" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

³Substituted for the word "One" by the Punjab Finance Act 2024 (VIII of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 June 2024, pp. 4999-5005, s. 3(c).

⁴Substituted by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

⁵Substituted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017. It was earlier substituted by the Punjab Finance Act, 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s.2; it came into force on 1 July 1995.

⁶Substituted for the word "One" by the Punjab Finance Act 2022 (IX of 2022), published in the Punjab Gazette (Extraordinary), dated: 24th June 2022, pp. 6339-6345, s.2. It was earlier substituted for the word "five" by the Punjab Finance Act 2020 (VIII of 2020), published in the Punjab Gazette (Extraordinary), dated: 29 June 2020, pp. 4353-4359, s. 2.

	Description of Instrument	Proper Stamp-duty
		(a) Rs.500/-, if the amount of consideration does not exceed Rs.500,000/-; and (b) Rs. 1000/-, if the consideration exceeds Rs.500,000/.]
19.	¹ [CERTIFICATE OR OTHER DOCUMENT evidencing the right or title of the holder thereof or any other person, either to any shares, scrip or stock in or of any incorporated company or other body corporate, or to become proprietor of shares, scrip or stock in or of any such company or body.	One hundred rupees.]
	See also LETTER OF ALLOTMENT OF SHARES (No. 36).	
20.	CHARTER PARTY , that is to say, any instrument (except an agreement for the hire of a tug-steamer) whereby a vessel or some specified principal part thereof is let for the specified purposes of the charterer, whether it includes a penalty clause or not.	² [One hundred] rupees.
21.	*****	*****
22.	COMPOSITION-DEED , that is to say, any instrument executed by a debtor whereby he conveys his	³ [One hundred] rupees.
	property for the benefit of his creditors, or whereby payment of a composition or dividend on their debts is secured to the creditors, or whereby provision is made for the continuance of the debtor's business under the supervision of inspector or under letters of licence for the benefit of his creditors.	
⁴ [22-A.	⁵ [CONTRACT , that is to say any instrument of the nature of memorandum of Agreement made or entered into by a contractor with Government, Corporation, Local Body, Local Authority, agency or organization set up or controlled by the ¹ [Federal Government] or the ² [Government]-	

¹Substituted by the Punjab Finance Act 2018 (XXX of 2018), published in the Punjab Gazette (Extraordinary), dated: 29 October 2018, pp. 805-818, s. 2: it came into force on 1 November 2018.

²Substitution by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33. It was earlier substituted for the word "Five" by the Punjab Finance Act, 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s.2; it came into force on 1 July 1995.

³*Ibid.*, for the word "Fifty".

⁴Added by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

⁵Substituted by the Punjab Finance Act 2018 (XXX of 2018), published in the Punjab Gazette (Extraordinary), dated: 29 October 2018, pp. 805-818, s. 2: it came into force on 1 November 2018.

	Description of Instrument	Proper Stamp-duty
	(a) to execute any work–	
	(i) where the amount of the contract does not exceed five lac rupees.	³ [Three thousand] rupees
	(ii) where it exceeds five lac rupees but does not exceed ten lac rupees.	⁴ [Five] thousand rupees
	(iii) where it exceeds ten lac rupees but does not exceed fifty lac rupees.	⁵ [Eight] thousand rupees
	(iv) where it exceeds fifty lac rupees but does not exceed one crore and fifty lac rupees.	⁶ [Fifteen] thousand rupees
	(v) where it exceeds one crore and fifty lac rupees	⁷ [Thirty] thousand rupees
	(b) to procure stores and materials	Twenty-five paises for every one hundred rupees or part thereof of the amount of the contract subject to a minimum of twelve hundred rupees.]]
¹ [23.	² [CONVEYANCE as defined by section 2(10) not being a TRANSFER charged or exempted under Article 62: (a) In case of immovable property in an urban area; and (b) in any other case	³ [Two] percent of the value of property. Three percent of the value of the property. ⁴ [Note-I]: In case of registration of the instrument, an additional stamp duty shall be charged as under:

¹Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

²Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.2

³Substituted for the words "Twelve hundred" by the Punjab Finance Act 2024 (VIII of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 June 2024, pp. 4999-5005, s. 3(d)(i).

⁴Substituted for the word "Two" by the Punjab Finance Act 2024 (VIII of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 June 2024, pp. 4999-5005, s. 3(d)(ii).

⁵Substituted for the word "Three" by the Punjab Finance Act 2024 (VIII of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 June 2024, pp. 4999-5005, s. 3(d)(iii).

⁶Substituted for the word "Five" by the Punjab Finance Act 2024 (VIII of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 June 2024, pp. 4999-5005, s. 3(d)(iv).

⁷Substituted for the word "Ten" by the Punjab Finance Act 2024 (VIII of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 June 2024, pp. 4999-5005, s. 3(d)(v).

	Description of Instrument		Proper Stamp-duty
			(a) Rs.500/-, if the amount of consideration does not exceed Rs.500,000/-; and (b) Rs.1000/-, if the amount of consideration exceeds Rs.500,000/-. ⁵[Note-II: The rate of the stamp duty shall be 0.5 percent of the value of a property to be transferred to a Real Estate Investment Trust (REIT), and the rate of the stamp duty shall be one percent of the value of a property which is to be transferred by REIT to the end users. Explanation. The term “value” means the real value but not below the one prescribed in valuation table issued under section 27-A of this Act.] ⁶[* * * * *].]
	(c) ⁷ [* * * * *]		
24.	COPY OR EXTRACT certified to be a true copy or extract by or by order of any public officer and not chargeable under the law for the time being in force relating to court-fees—		

¹Substituted by the Punjab Finance Act 2010 (VI of 2010), published in the Punjab Gazette (Extraordinary), dated: 28 June 2010, pp. 3145-3150, s. 2: it came into force on 1 July 2010. It was earlier substituted by the Punjab Finance Act, 1986 (IV of 1986), published in the Punjab Gazette (Extraordinary), dated: 14 June 1986, pp. 1307-1309, s. 2. It was earlier substituted by the Punjab Finance Act, 1975 (XL of 1975), published in the Punjab Gazette (Extraordinary), dated: 28 June 1975, pp. 945-A to 945D, s. 3: it came into force on 1 July 1975.

²Substituted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

³Substituted for the word “One” by the Punjab Finance Act 2022 (IX of 2022), published in the Punjab Gazette (Extraordinary), dated: 24th June 2022, pp. 6339-6345, s.2. It was earlier substituted for the word “five” by the Punjab Finance Act 2020 (VIII of 2020), published in the Punjab Gazette (Extraordinary), dated: 29 June 2020, pp. 4353-4359, s.2.

⁴Substituted by the Punjab Finance Act 2022 (IX of 2022), published in the Punjab Gazette (Extraordinary), dated: 24th June 2022, pp. 6339-6345, s.2.

⁵Added by the Punjab Finance Act 2022 (IX of 2022), published in the Punjab Gazette (Extraordinary), dated: 24th June 2022, pp. 6339-6345, s.2.

⁶Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33.

⁷Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33.

	Description of Instrument	Proper Stamp-duty
	(i) if the original was not chargeable with duty or if the duty with which it was chargeable does not exceed four rupees;	Two rupees.
	(ii) in any other case	¹ [Ten] rupees.
	EXEMPTION	
	(a) Copy of any paper which a public officer is expressly required by law to make or furnish for record in any public office or for any public purpose;	
	(b) Copy of, or extract from, any register relating to births, baptisms, namings, dedications, marriages (divorces), deaths or burials.	
25.	² [COUNTERPART OR DUPLICATE of any instrument chargeable with	
	duty and in respect of which the proper duty has been paid–	
	³ [* * * * *];	⁴ [* * * * *]
	(b) ⁵ [* * * * *]	One hundred rupees.]
	Exemption	
	Counterpart of any lease granted to cultivator when such lease is exempted from duty.	
26.	CUSTOMS-BOND–	
	(a) ⁶ [* * * * *]	⁷ [* * * * *]
	(b) ⁸ [* * * * *]	¹ [One hundred] rupees. ² [Note: In case of registration of the instrument, an additional stamp duty of Rs.25/- shall be charged.]

¹Substituted for the word "Five" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995. The word "Five" was earlier substituted for the word "Four" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

²Substituted by the Punjab Finance Act 2018 (XXX of 2018), published in the Punjab Gazette (Extraordinary), dated: 29 October 2018, pp. 805-818, s. 2: it came into force on 1 November 2018.

³Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

⁴Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

⁵Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

⁶Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

⁷Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

⁸Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

	<i>Description of Instrument</i>	<i>Proper Stamp-duty</i>
³ [27.	DEBENTURE OR PARTICIPATION TERM CERTIFICATE OR TERM FINANCE CERTIFICATE OR ANY OTHER INSTRUMENT OF REDEEMABLE CAPITAL OTHER THAN A COMMERCIAL PAPER	One-twentieth of one percent, that is to say, 0.05% of the face value ⁴ [* *] subject to a maximum of one million rupees ⁵ [but shall not be less than one hundred rupees.]
	(whether or not a mortgage debenture, a Participation Term Certificate, a Term Finance Certificate or any other instrument of redeemable capital), being a marketable security transferable by endorsement or by separate instrument of transfer or by delivery.	
	Explanation-I. – The term “Debenture” includes any interest coupons attached thereto, but the amount of such coupons shall not be included in estimating the duty.	
	Explanation-II. – The term “Participation Term Certificate” means an instrument or certificate of a specified denomination called the face value or nominal value, issued by a company for raising capital, the holder whereof participates in the profit and loss of the company over such period to such extent and on such conditions as may be specified at the time of its issue.	

¹Substituted for the word “Fifty” by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995. The word “Fifty” was earlier substituted for the word “Thirty” by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

²Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

³Substituted by the Punjab Finance Act, 2006 (V of 2006), published in the Punjab Gazette (Extraordinary), dated: 30 June 2006, pp. 5027-5029, s. 3: it came into force on 1 July 2006.

⁴The words “per annum” were omitted by the Punjab Finance Act, 2007 (IV of 2007), published in the Punjab Gazette (Extraordinary), dated: 30 June 2007, pp. 5665-5666, s. 2: it came into force on 1 July 2007.

⁵Inserted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33.

	Description of Instrument	Proper Stamp-duty
	Explanation-III. — The term “Term Finance Certificate” means a fixed tenure instrument or certificate of a specified denomination called the face value or nominal value issued to raise capital by a body corporate in the form of transferable security.]	
¹ [27-A.	² [DECREE, RULE OF A COURT OR AN ORDER OF A COURT based on mutual consent of the parties in cases involving transfer of an immovable property including sale, exchange, gift or mortgage, declaring or conferring a right in, or title to, an immovable property: a) in case of immovable property in an urban area; and b) in any other case	³ [Two] percent of the value of the property. Three percent of the value of the property.
		NOTE: In case of registration of the instrument, an additional stamp duty shall be charged as under: (a) Rs.500/-, if the amount of consideration does not exceed Rs.500,000/-; and (b) Rs. 1000/-, if the consideration exceeds Rs.500,000/-.
	EXPLANATION. — Value, in this Article, means the value of the property in accordance with the valuation table as notified by the Collector or where valuation table is not available, the average sale price of a property of similar nature in the same revenue estate or locality in the preceding year as may be determined by the Collector.]	

¹Inserted by the Punjab Finance Act 2008 (I of 2008), published in the Punjab Gazette (Extraordinary), dated: 27 June 2008, pp. 4033-4035, s. 3: it came into force on 1 July 2008.

²Substituted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

³Substituted for the word “One” by the Punjab Finance Act 2022 (IX of 2022), published in the Punjab Gazette (Extraordinary), dated: 24th June 2022, pp. 6339-6345, s.2. It was earlier substituted for the word “five” by the Punjab Finance Act 2020 (VIII of 2020), published in the Punjab Gazette (Extraordinary), dated: 29 June 2020, pp. 4353-4359, s.2.

	Description of Instrument	Proper Stamp-duty
28.	¹ [DELIVERY-ORDER IN RESPECT OF GOODS , that is to say, any instrument entitling any person therein named, or his assigns or the holder thereof, to the delivery of any goods lying in any dock or port, or in any ware-house in which goods are stored or deposited on rent or hire, or upon any wharf such instrument being signed by	One hundred rupees.]
	or on behalf of the owner of such goods upon the sale or transfer of the property therein, when such goods exceed in value twenty rupees.	
	DEPOSIT OF TITLE-DEEDS. see AGREEMENT relating to DEPOSIT OF TITLE-DEEDS, PAWN OR PLEDGE (No.6).	
	DISSOLUTION OF PARTNERSHIP, See PARTNERSHIP (No. 46).	
29.	DIVORCE -Instrument of, that is to say any instrument by which any person effects the dissolution of his marriage.	² [One ³ [thousand] rupees].
	DOWER - Instrument of, See SETTLEMENT (No. 58).	
	DUPLICATE , See COUNTERPART (No. 25).	
⁴ [30.	ENTRY AS AN ADVOCATE, OR ATTORNEY ON THE ROLL OF ANY HIGH COURT *****	* * * * *

¹Substituted by the Punjab Finance Act 2018 (XXX of 2018), published in the Punjab Gazette (Extraordinary), dated: 29 October 2018, pp. 805-818, s. 2: it came into force on 1 November 2018.

²Substituted for the words "Thirty rupees" by the Punjab Finance Act 2014 (XVII of 2014), published in the Punjab Gazette (Extraordinary), dated: 26 June 2014, pp.4169-4178, s. 2: it came into force on 1 July 2014. The word "Thirty" was earlier substituted for the word "Fifteen" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

³Substituted for the word "hundred" by the Punjab Finance Act 2024 (VIII of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 June 2024, pp. 4999-5005, s. 3(e).

⁴Omitted by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

	Description of Instrument		Proper Stamp-duty
¹ [31.	EXCHANGE of immovable property: (a) in case of immovable property in an urban area; (b) in case of immovable property in rural area; (c) in case of exchange between urban and rural property.		²[Two] percent of the value of each immovable property Three percent of the value of each immovable property ³[Two] percent of the value of urban immovable property and three percent of the value of rural immovable property Note: In case of registration of the instrument, an additional stamp duty shall be charged as under: (a) five hundred rupees if the amount of consideration does not exceed five hundred thousand rupees; and (b) one thousand rupees if the amount of consideration exceeds five hundred thousand rupees.]

¹ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33. It was earlier substituted by the Punjab Finance Act 2010 (VI of 2010), published in the Punjab Gazette (Extraordinary), dated: 28 June 2010, pp. 3145-3150, s. 2: it came into force on 1 July 2010. It was earlier substituted by the Punjab Finance Act 1997 (IX of 1997), published in the Punjab Gazette (Extraordinary), dated 1 July 1997, pp. 1011-1014, s. 2: it came into force on the same day. It was earlier substituted by the Punjab Finance Act, 1986 (IV of 1986), published in the Punjab Gazette (Extraordinary), dated: 14 June 1986, pp. 1307-1309, s. 2. It was earlier substituted by the Punjab Finance Act, 1975 (XL of 1975), published in the Punjab Gazette (Extraordinary), dated: 28 June 1975, pp. 945-A to 945D, s. 3: it came into force on 1 July 1975 .

² Substituted for the word "One" by the Punjab Finance Act 2022 (IX of 2022), published in the Punjab Gazette (Extraordinary), dated: 24th June 2022, pp. 6339-6345, s.2.

³ Substituted for the word "One" by the Punjab Finance Act 2022 (IX of 2022), published in the Punjab Gazette (Extraordinary), dated: 24th June 2022, pp. 6339-6345, s.2.

	Description of Instrument		Proper Stamp-duty
32.	FURTHER CHARGE -Instrument of, that is to say, any instrument imposing a further charge on mortgaged property—		
	(a) when the original mortgage is one of the description referred to in clause (a) of Article No. 40 (that is, with possession);		¹ [Two percent of the] consideration equal to the amount of the further charge secured by such instrument.
	(b) when such mortgage is one of the description referred to in clause (b) of Article No. 40 (that is, without possession)—		
	(i) if at the time of execution of the instrument of further charge possession of the property is given or agreed to be given under such instrument;		² [Two percent of the] consideration equal to the total amount of the charge (including the original mortgage and any further charge already made) less the duty already paid on such original mortgage and further charge.
	(ii) if possession is not so given		³ [Two percent of] the amount of the further charge secured by such instrument. ⁴ [Note: In case of registration of the instrument, an additional stamp duty shall be charged as under: (a) Rs.500/-, if the amount of consideration does not exceed Rs.500,000/-; and
			(b) Rs.1000/-, if the amount of consideration exceeds Rs.500,000/-.]

¹Substituted for the expression "The same duty as on a Conveyance (No.23) for a" by the Punjab Finance Act, 2004 (XIX of 2004), published in the Punjab Gazette (Extraordinary), dated: 30 June 2004, pp.1989-1992, s.2; it came into force on 1 July 2004.

²Substituted for the expression "The same duty as on a Conveyance (No.23) for a" by the Punjab Finance Act, 2004 (XIX of 2004), published in the Punjab Gazette (Extraordinary), dated: 30 June 2004, pp.1989-1992, s. 2: it came into force on 1 July 2004.

³Substituted *ibid.*, for the expression "The same duty as on a Bond (No.15) for".

⁴Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

	Description of Instrument	Proper Stamp-duty
¹ [33.	² [GIFT – Instrument of, including a memorandum of oral gift of an immovable property, not being a SETTLEMENT (Article 58) or WILL or TRANSFER (Article 62) – when executed in respect of an immovable property: a) in case of immovable property in an urban area; and	³ [Two] percent of the value of the property: provided that if the gift deed is executed between spouses, father, mother, son, daughter, grandparent, sibling or from one wife or widow to another wife or widow of the same husband, the rate of stamp duty shall be ⁴ [Two] percent of the value of the property.
	b) in any other case	Three percent of the value of the property. Note: In case of registration of the instrument, an additional stamp duty shall be charged as under: (a) Rs.500/-, if the amount of consideration does not exceed Rs.500,000/- ; and
		(b) Rs.1000/-, if the amount of consideration exceeds Rs.500,000/-.]

¹Substituted by the Punjab Finance Act 2010 (VI of 2010), published in the Punjab Gazette (Extraordinary), dated: 28 June 2010, pp. 3145-3150, s. 2: it came into force on 1 July 2010. It was earlier substituted by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995. It was earlier substituted by the Punjab Finance Act, 1975 (XL of 1975), published in the Punjab Gazette (Extraordinary), dated: 28 June 1975, pp. 945-A to 945D, s. 3: it came into force on 1 July 1975.

²Substituted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

³Substituted for the word “One” by the Punjab Finance Act 2022 (IX of 2022), published in the Punjab Gazette (Extraordinary), dated: 24th June 2022, pp. 6339-6345, s.2. It was earlier substituted for the word “five” by the Punjab Finance Act 2020 (VIII of 2020), published in the Punjab Gazette (Extraordinary), dated: 29 June 2020, pp. 4353-4359, s. 2.

⁴Substituted for the word “One” by the Punjab Finance Act 2022 (IX of 2022), published in the Punjab Gazette (Extraordinary), dated: 24th June 2022, pp. 6339-6345, s.2. It was earlier substituted for the word “three” by the Punjab Finance Act 2020 (VIII of 2020), published in the Punjab Gazette (Extraordinary), dated: 29 June 2020, pp. 4353-4359, s. 2.

	Description of Instrument	Proper Stamp-duty
34.	INDEMNITY BOND	The same duty as on a Security Bond (No. 57) for the same amount.
	INSPECTORSHIP-DEED , See COMPOSITION-DEED (No. 22) . INSURANCE- See POLICY OF INSURANCE (No. 47).	¹ [Note: In case of registration of the instrument, an additional stamp duty of Rs.25/- shall be charged.]
35.	² [LEASE, including an under lease or sub-lease and any agreement to let or sub-let:	
	(1) whereby such lease the rent is fixed and no premium is paid or delivered:	
	(a) Where the lease purports to be for a term of less than twenty years:	3.25 percent of the average annual rent of the lease.
	(b) Where the lease purports to be for a term of twenty years or above or in perpetuity:	
	(i) In case of immovable property in an urban area;	Two percent of the value of the immovable property or rental values whichever is higher

¹Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

² Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33.

	Description of Instrument	Proper Stamp-duty
	(ii) in any other case	Three percent of the value of the immovable property or rental value whichever is higher. Note: An additional stamp duty shall be charged as under: (a) Rs.500/-, if the amount of consideration does not exceed Rs.500,000/-; and (b) Rs.1000/-, if amount of consideration exceeds Rs.500,000/-.
	(c) where the lease is granted for advance money and where no rent is reserved:	
	(i) in case of immovable property in an urban area; and	Two percent of the consideration equal to the amount of advance as set forth in the lease. Note: In case of registration of the instrument, an additional stamp duty shall be charged as under: (a) Rs.500/-, if the amount of consideration does not exceed Rs.500,000/-; and (b) Rs.1000/-, if amount of consideration exceeds Rs.500,000/-.

	Description of Instrument	Proper Stamp-duty
	(ii) in any other case	Three percent of the consideration equal to the amount of advance as set forth in the lease. Note: In case of registration of the instrument, an additional stamp duty shall be charged as under: (a) Rs.500/-,if the amount of consideration does not exceed Rs.500,000/-; and (b) Rs.1000/-, if the amount of consideration exceeds Rs.500,000/-
	(d) where the lease is granted for a fine or premium and where no rent is reserved:	
	(i) in case of immovable property in an urban area; and	Two percent of the consideration equal to the amount of a fine or premium as set forth in the lease. Note: In case of registration of the instrument, an additional stamp duty shall be charged as under: (a) Rs.500/-, if the amount of consideration does not exceed Rs.500,000/-; and (b) Rs.1000/-, if amount of consideration exceeds Rs.500,000/-.

	<i>Description of Instrument</i>	<i>Proper Stamp-duty</i>
	(ii) in any other case	Three percent of the consideration equal to the amount of advance as set forth in the lease. Note: In case of registration of the instrument, an additional stamp duty shall be charged as under: (a) Rs.500/-, if the amount of consideration does not exceed Rs.500,000/-; and (b) Rs.1000/-, if amount of consideration exceeds Rs.500,000/-.
	(2)(a) where the lease is granted for money advanced in addition to the rent reserved:	

	<i>Description of Instrument</i>	<i>Proper Stamp-duty</i>
	(i) in case of immovable property in an urban area; and	Two percent of the consideration equal to the amount of advance as set forth in the lease, in addition to the duty which would have been payable on such lease, if no advance had been paid or delivered. Note: In case of registration of the instrument, an additional stamp duty shall be charged as under: (a) Rs.500/-,if the amount of consideration does not exceed Rs.500,000/-; and (b) Rs.1000/-, if amount of consideration exceeds Rs.500,000/-.

	<i>Description of Instrument</i>	<i>Proper Stamp-duty</i>
	(ii) in any other case	Three percent of the consideration equal to the amount of advance as set forth in the lease, in addition to the duty which would have been payable on such lease, if no advance had been paid or delivered. Note: In case of registration of the instrument, an additional stamp duty shall be charged as under: (a) Rs.500/-, if the amount of Consideration does not exceeds Rs.500,000 /-; and (b) Rs.1000/-, if amount of consideration exceeds Rs.500,000/-
	(b) where the lease is granted for a fine or premium in addition to the rent reserved	

	<i>Description of Instrument</i>	<i>Proper Stamp-duty</i>
	(i) in case of immovable property in an urban area; and	Two percent of the consideration equal to the amount of advance as set forth in the lease, in addition to the duty which would have been payable on such lease, if no advance had been paid or delivered. Note. In case of registration of the instrument, an additional stamp duty shall be charged as under: (a) Rs.500/- if the amount of consideration does not exceed Rs.500,000/-; and (b) Rs.1000/- if amount of consideration exceeds Rs.500,000/-

	Description of Instrument	Proper Stamp-duty
	(ii) in any other case	Three percent of the consideration equal to the amount of advance as set forth in the lease, in addition to the duty which would have been payable on such lease, if no advance had been paid or delivered. Note: in case of registration of the instrument, an additional stamp duty shall be charged as under: (a) Rs.500/- if the amount of consideration does not exceed Rs.500,000/-; and (b) Rs.1000/- if amount of consideration exceeds Rs.500,000/-".]
36.	¹ [LETTER OF ALLOTMENT OF SHARES in any company or proposed company or in respect of any loan to be raised by any company or proposed company.	Fifty rupees]
	See also CERTIFICATE OR OTHER DOCUMENT (No. 19).	
² [37.	LETTER OF CREDIT * * *	* * * * *
38.	LETTER OF LICENCE , that is to say, any agreement between a debtor and his creditors, that the letter shall, for a specified time, suspend their claims and allow the debtor to carry on business at his own discretion.	³ [One hundred] rupees.
¹ [39.	MEMORANDUM OF ASSOCIATION OR A COMPANY *****	* * * * *

¹Substituted by the Punjab Finance Act 2018 (XXX of 2018), published in the Punjab Gazette (Extraordinary), dated: 29 October 2018, pp. 805-818, s. 2: it came into force on 1 November 2018.

²Deleted by the Punjab Finance Ordinance, 2000 (III of 2000), published in the Punjab Gazette (Extraordinary), dated: 30 June 2000, pp. 587-595, s. 2: it came into force on 1 July 2000: the said Ordinance was saved under Article 270AA of the Constitution of the Islamic Republic of Pakistan, as substituted by the Constitution (Eighteenth Amendment) Act, 2010 (X of 2010), published in the Gazette of Pakistan (Extraordinary), dated: 20 April 2010, pp. 267-316, s. 96.

³ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33. It was earlier substituted for the word "Thirty" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995. The word "Thirty" was earlier substituted for the word "Twenty-five" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

	Description of Instrument	Proper Stamp-duty
40.	MORTGAGE-DEED not being an AGREEMENT RELATING TO DEPOSIT OF TITLE-DEEDS, PAWN OR PLEDGE (No. 6), BOTTOMERY BOND (No. 16), MORTGAGE OF A CROP (No. 41), RESPONDENTIA BOND (No. 56), OR SECURITY BOND (No. 57)–	
	(a) when possession of the property or any part of the property comprised in such deed is given by the mortgagor or agreed to be given;	² [³ [Three percent] of the] consideration equal to the amount secured by such deed.
		⁴ [Note: In case of registration of the instrument, an additional stamp duty shall be charged as under:
		(a) Rs. 500/-, if the amount of consideration does not exceed Rs.500,000/-; and (b) Rs.1000/-, if the amount of consideration exceeds Rs.500,000/-]
	(b) when possession is not given or agreed to be given as aforesaid;	⁵ [⁶ [Three percent] of] the amount secured by such deed.
	Explanation. – A mortgagor who gives to the mortgagee a power of attorney to collect rents or a lease of the property mortgaged or part thereof, is deemed to give possession within the meaning of this Article.	

¹Deleted by the Punjab Finance Act, 2004 (XIX of 2004), published in the Punjab Gazette (Extraordinary), dated: 30 June 2004, pp. 1989-1992, s. 2: it came into force on 1 July 2004.

²Substituted *ibid.*, for the expression "The same duty as on a Conveyance (No.23) for a".

³Substituted for the words "Two percent" by the Punjab Finance Act 2014 (XVII of 2014), published in the Punjab Gazette (Extraordinary), dated: 26 June 2014, pp.4169-4178, s. 2: it came into force on 1 July 2014.

⁴Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

⁵Substituted for the expression "The same duty as on a Bond (No.15) for" by the Punjab Finance Act, 2004 (XIX of 2004), published in the Punjab Gazette (Extraordinary), dated: 30 June 2004, pp. 1989-1992, s. 2: it came into force on 1 July 2004.

⁶Substituted for the words "Two percent" by the Punjab Finance Act 2014 (XVII of 2014), published in the Punjab Gazette (Extraordinary), dated: 26 June 2014, pp.4169-4178, s. 2: it came into force on 1 July 2014.

	Description of Instrument	Proper Stamp-duty
		¹ [Note: In case of registration of the instrument, an additional stamp duty shall be charged as under: (a) Rs. 500/-, if the amount of consideration does not exceed Rs.500,000/-; and (b) Rs.1000/-, if the amount of consideration exceeds Rs.500,000/-]
	(c) when a collateral or auxiliary or additional or substituted security, or by	
	way of further assurance for the above mentioned purposes where the principal or primary security is duly stamped–	
	for every sum secured not exceeding Rs. 1,000;	Ten rupees.
	and for every Rs. 1,000 or part thereof secured in excess of Rs. 1,000.	Ten rupees. ² [Note: In case of registration of the instrument, an additional stamp duty shall be charged as under: (a) Rs. 500/-, if the amount of consideration does not exceed Rs.500,000/-; and (b) Rs.1000/-, if the amount of consideration exceeds Rs.500,000/-]
	³ [(d)(i) mortgage with banking companies, that is to say, simple or legal mortgage for banking companies or other financial institutions, when the entire finance is not based on interest; and	⁴ [(i) 0.45% of the loan amount subject to a maximum of ⁵ [five hundred thousand] rupees; and

¹Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

²Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

³Inserted by the Punjab Finance Act, 2006 (V of 2006), published in the Punjab Gazette (Extraordinary), dated: 30 June 2006, pp. 5027-5029, s. 3: it came into force on 1 July 2006.

⁴Substituted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

⁵Substituted for the words "one hundred thousand" by the Punjab Finance Act 2019 (XV of 2019), published in the Punjab Gazette (Extraordinary), dated: 28 June 2019, pp. 4105-4114, s. 2: it came into force on 1 July 2019.

	Description of Instrument	Proper Stamp-duty
	(ii) in any other case.	(ii) 0.45% of the loan amount.]]
	EXEMPTIONS	
	(1) Instruments, executed by persons taking advances under the Land Improvement Loans Act, 1883 ¹ , or the ² West Pakistan Agriculturists Loans	
	Act, 1958 ³ , or by their sureties as security for the repayment of such advances.	
	(2) Letter of hypothecation accompanying a Bill of Exchange.	
41.	⁴ [MORTGAGE OF A CROP, including any instrument evidencing an agreement to secure the repayment of a loan made upon any mortgage of a crop, whether the crop is or is not in existence at the time of mortgage-	
	(a) When the loan is repayable, not more than three months from the date of the instrument.	0.5 percent of the loan amount subject to a minimum of one hundred rupees.
	(b) When the loan is repayable more than three months, but not more than eighteen months from the date of the instrument.	2 percent of the loan amount subject to a minimum of one hundred rupees.]]
42.	⁵ [NOTARIAL ACT , that is to say, any instrument, endorsement, note, attestation, certificate or entry not being a PROTEST (No. 50) made or signed by a Notary Public in the execution of the duties of his office, or by any other person lawfully acting as a Notary Public.	Fifty rupees.]
	See also PROTEST OF BILL OR NOTE (No.50).	

¹XIX of 1883.

²Now 'Punjab'. See the Punjab Laws (Adaptation) Order, 1974 (P.O. No.1 of 1974), published in the Punjab Gazette (Extraordinary), dated: 20 November 1974, pp.1425-A to 1425-PP, Article 2 and the Schedule; it came into force on 14 August 1973.

³West Pakistan Act XVII of 1958.

⁴ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33.

⁵Substituted by the Punjab Finance Act 2018 (XXX of 2018), published in the Punjab Gazette (Extraordinary), dated: 29 October 2018, pp. 805-818, s. 2: it came into force on 1 November 2018.

	Description of Instrument		Proper Stamp-duty
43.	NOTE OR MEMORANDUM SENT BY a broker or agent to his principal intimating the purchase or sale on account of such principal–		
	(a) of any goods exceeding in value twenty rupees;		¹ [² [Five] rupees].
	(b) of any stock or marketable security exceeding in value twenty rupees, not being a Government security;		³ [⁴ [Five] rupees] for every Rs.5,000 or part thereof of the value of the stock or security.
	(c) of a Government security.		⁵ [One rupee] for every 10,000 rupees or part thereof of the value of the security subject to a maximum of ⁶ [Fifty] rupees.
44.	NOTE OF PROTEST BY THE MASTER OF A SHIP.		⁷ [One hundred] rupees.
	See also PROTEST BY MASTER OF A SHIP (No. 51) ORDER FOR THE PAYMENT OF MONEY. See BILL OF EXCHANGE (No. 13).		

¹Substituted for the words "Fifty paises" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

²Substituted for the word "Two" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

³Substituted for the words "Twenty-five paisa" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

⁴Substituted for the word "Two" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

⁵Substituted for the words "Twenty-five paisa" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

⁶Substituted for the word "forty" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

⁷ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33.

	Description of Instrument	Proper Stamp-duty
45.	PARTITION -Instrument of [as defined by section 2 (15)].	^{1,2} [[One percent] of] the amount of the value of the separated share or shares of the property. Explanation. — The largest share remaining after the property is partitioned (or if there are two or more shares of equal value and not smaller than any of the other shares, than one of such equal shares) shall be deemed to be that from which other shares are separated:
		Provided always that— (a) when an instrument of partition containing an agreement to divide property in severalty is executed and a partition is effected in pursuance of such agreement, the duty chargeable upon the instrument affecting such partition shall be reduced by the amount of duty paid in respect of the first instrument but shall not be less than ³ [one hundred rupees];
		(b) where land is held on Revenue Settlement for a period not exceeding thirty years and paying the full assessment, the value for purpose of duty shall be calculated at not more than five times the annual revenue;

¹Substituted for the words "Three rupees for every one hundred rupees or part thereof for" by the Punjab Finance Act, 2004 (XIX of 2004), published in the Punjab Gazette (Extraordinary), dated: 30 June 2004, pp.1989-1992, s.2; it came into force on 1 July 2004. The words "Three rupees for every one hundred rupees or part thereof" were earlier substituted for the words "The same duty as on a Bond (No. 15)" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

²Substituted for the word "Two percent" by the Punjab Finance Act 2020 (VIII of 2020), published in the Punjab Gazette (Extraordinary), dated: 29 June 2020, pp. 4353-4359, s. 2.

³Substituted for the words "four rupees" by the Punjab Finance Act, 2004 (XIX of 2004), published in the Punjab Gazette (Extraordinary), dated: 30 June 2004, pp. 1989-1992, s. 2: it came into force on 1 July 2004.

	Description of Instrument		Proper Stamp-duty
			(c) where a final order for effecting a partition passed by any Revenue authority or any Civil Court, or an award by an arbitrator directing a partition, is stamped with the stamp required for an instrument of partition, and an
			instrument of partition in pursuance of such order or award is subsequently executed, the duty on such instrument shall not exceed ¹ [one hundred rupees].
			² [(d) when instrument of partition is executed in respect of agricultural land, the Stamp Duty shall be charged as one rupee for every rupees one hundred or part thereof of the value of such land.] ³ [Note: In case of registration of the instrument, an additional stamp duty shall be charged as under: (a) Rs. 500/-, if the amount of consideration does not exceed Rs. 500,000/-; and (b) Rs.1000/-, if the amount of consideration exceeds Rs. 500,000/-.] ¹ [Exception. — Notwithstanding anything contained herein, a fixed

¹Substituted for the words "four rupees" by the Punjab Finance Act, 2004 (XIX of 2004), published in the Punjab Gazette (Extraordinary), dated: 30 June 2004, pp. 1989-1992, s. 2: it came into force on 1 July 2004.

²Added by the Punjab Finance Act, 1975 (XL of 1975), published in the Punjab Gazette (Extraordinary), dated: 28 June 1975, pp. 945-A to 945D, s. 3: it came into force on 1 July 1975 .

³Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

	Description of Instrument		Proper Stamp-duty
			stamp duty of five hundred rupees shall be charged in respect of an instrument of partition relating to an urban or rural property including agricultural land, which is partly or wholly based on opening of inheritance.]
46.	PARTNERSHIP– A-INSTRUMENT OF–		
	(a) where the capital of the partnership does not exceed Rs. ² [10,000];		³ [Two hundred rupees].
	(b) in any other case		⁴ [One thousand rupees].
	B-DISSOLUTION OF–		⁵ [Half of the Stamp duty payable on original].
	PAWN OR PLEDGE– See AGREEMENT RELATING TO DEPOSIT OF TITLE-DEEDS, PAWN OR PLEDGE (No. 6)		
			⁶ [Note: In case of registration of the instrument, an additional stamp duty of Rs.25/- shall be charged.]
47.	⁷ [POLICY OF INSURANCE– A-See INSURANCE (see section 7)–		
	For each voyage–		if drawn singly. if drawn in duplicate, for each part.

¹Inserted by the Punjab Finance Act 2012 (XLI of 2012), published in the Punjab Gazette (Extraordinary), dated: 25 June 2012, pp. 41719 -41724: it came into force on 1 July 2012.

²Substituted for the figure “500” by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

³Substituted for the words “One hundred rupees” by the Punjab Finance Act 2014 (XVII of 2014), published in the Punjab Gazette (Extraordinary), dated: 26 June 2014, pp.4169-4178, s. 2: it came into force on 1 July 2014. The words “One hundred” was earlier substituted for the words “Fifty” by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995. The word “Fifty” was earlier substituted for the word “Ten” by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

⁴*Ibid.*, for the words “Five hundred rupees”. The words “Five hundred” were earlier substituted for the words “Two hundred and fifty” by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995. The words “Two hundred and fifty” were earlier substituted for the word “Fifty” by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

⁵Substituted for the words “Twenty-five rupees” by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

⁶Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

⁷Substituted by the Punjab Finance Act 2018 (XXX of 2018), published in the Punjab Gazette (Extraordinary), dated: 29 October 2018, pp. 805-818, s. 2: it came into force on 1 November 2018.

	Description of Instrument	Proper Stamp-duty
	(i) where the premium or consideration does not exceed the rate of 1/8 percent of the amount insured by the policy;	Ten rupees Ten rupees
	for every full sum of Rs. 5,000 and also any fractional parts thereof insured by the policy–;	
	(ii) in any other case, in respect of every full sum of Rs. 2,000 and also any fractional part thereof insured by the policy.	Ten rupees Ten rupees
	(2) For time–	
	in respect of every full sum of Rs.2,000 or part thereof insured by the policy–	
	(i) where the insurance shall be made for any time not exceeding six months;	Ten Ten rupees rupees
	(ii) where the insurance shall be made for any time exceeding six months and not exceeding twelve months.	Twenty Ten rupees rupees
	B-FIRE-INSURANCE AND OTHER CLASSES OF INSURANCE, NOT ELSEWHERE INCLUDED IN THIS ARTICLE, COVERING GOODS, MERCHANDISE, PERSONAL EFFECTS, CROPS, AND OTHER PROPERTY AGAINST LOSS OR DAMAGE–	
	(1) in respect of an original policy–	
	(i) when the sum insured does not exceed Rs.5,000;	Fifty rupees
	(ii) in any other case and	One hundred rupees
	(2) in respect of each receipt for any payment of a premium on any renewal of an original policy.	One half of the duty payable in respect of the original policy in addition to the amount, if any, chargeable under No. 53.
	C-ACCIDENT AND SICKNESS-INSURANCE–	
	(a) Against railway accident, valid for a single journey only.	Fifty rupees
	Exemption	
	When issued to a passenger travelling by the intermediate or the third class in any railway.	
	(b) In any other case for the maximum amount which may become payable in the case of any single accident or sickness where such amount does not exceed Rs.2,000 and	Ten rupees; provided that, in case of a policy of insurance against death by accident when the annual premium payable does not exceed Rs. 10 per Rs. 100,000 the duty on such instrument shall be ten

	Description of Instrument	Proper Stamp-duty
	also where such amount exceeds Rs.2,000 for every Rs.2,000 or part thereof.	rupees for every Rs. 1,000 or part thereof of the maximum amount which may become payable under it.
	D-INSURANCE BY WAY OF INDEMNITY– Against liability to pay damages on account of accidents to workmen employed by or under the insurer or against liability to pay compensation under the Workmen's Compensation Act, 1923, for every Rs.100 or part thereof payable as premium.	Three rupees
	E-LIFE INSURANCE OR OTHER INSURANCE NOT SPECIFICALLY PROVIDED FOR, except such a RE-INSURANCE as is described in Division of this article–	If drawn singly If drawn in duplicate for each part
	(i) for every sum insured not exceeding Rs.250;	Ten rupees Ten rupees
	(ii) for every sum insured exceeding Rs.250 but not exceeding Rs.500;	Ten rupees Ten rupees
	(iii) for every sum insured exceeding Rs.500 but not exceeding Rs.1,000 and also for every Rs.1,000 or part thereof in excess of Rs.1,000.	Ten rupees Ten rupees
	Exemption	
	Policies of life insurance granted by the Director-General of Post Offices in accordance with rules for Postal Life Insurance issued under the authority of the Federal Government.	
	F-RE-INSURANCE BY AN INSURANCE COMPANY WHICH HAS GRANTED A POLICY OF THE NATURE SPECIFIED IN DIVISION A OR DIVISION B OF THIS ARTICLE WITH ANOTHER COMPANY BY WAY OF INDEMNITY OR GUARANTEE AGAINST THE PAYMENT ON THE ORIGINAL INSURANCE OF A CERTAIN PART OF THE SUM INSURED THEREBY.	One half of the duty payable in respect of the original insurance but not less than ten rupees or more than one hundred rupees.]
	General Exemption	
	Letter of cover or engagement to issue a policy of insurance:	
	Provided that, unless such letter or engagement bears the stamp prescribed by this Act for such policy nothing shall be claimable thereunder, nor shall it be available for any purpose, except to compel the delivery of the policy therein mentioned.	
48.	POWER-OF-ATTORNEY as defined by section 2 (21), not being a proxy (No. 52)–	

	<i>Description of Instrument</i>	<i>Proper Stamp-duty</i>
	¹ [(a) when executed for authorizing not more than ten persons;	² [[Two thousand]] rupees. ⁴ [Note: In case of registration of the instrument, an additional
	(b) when given for consideration and authorizing the attorney to sell any immovable property	stamp duty of Rs.25/- shall be charged.] ⁶ [Three percent of the amount calculated according to the value notified by the District Collector]. ⁷ [Note: In case of registration of the instrument, an additional stamp duty shall be charged as under: (a) Rs. 500/-, if the amount of consideration does not exceed Rs. 500,000/-; and (b) Rs.1000/-, if the amount of consideration exceeds Rs. 500,000/-.]
	⁵ [(bb) when given without consideration for authorising the attorney to sell any immovable property.	⁸ [(a) ¹ [Three thousand] rupees in case the Power of Attorney is executed between spouses or between

¹Sub Articles (a) to (f) were substituted by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

²Substituted for the words "One hundred" by the Punjab Finance Act 1998 (VII of 1998), published in the Punjab Gazette (Extraordinary), dated: 30 June 1998, pp.1577-1580, s. 2: it came into force on 1 July 1998.

³Substituted for the words “Five hundred” by the Punjab Finance Act 2024 (VIII of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 June 2024, pp. 4999-5005, s. 3(f)(i).

⁴Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

⁵Added by the Punjab Finance Act 1998 (VII of 1998), published in the Punjab Gazette (Extraordinary), dated: 30 June 1998, pp.1577-1580, s. 2: it came into force on 1 July 1998.

⁶Substituted for the words “Three percent of the amount of the consideration” by the Punjab Finance Act 2016 (XXXV of 2016), published in the Punjab Gazette (Extraordinary), dated: 29 June 2016, pp. 6083-6092, s. 2: it came into force on 1 July 2016. The words “Three percent” were earlier substituted for the words “Two percent” by the Punjab Finance Act 2014 (XVII of 2014), published in the Punjab Gazette (Extraordinary), dated: 26 June 2014, pp.4169-4178, s. 2: it came into force on 1 July 2014. The words “Two percent of” were earlier substituted for the words “The same duty as is leviable on a Conveyance (No.23) for” by the Punjab Finance Act, 2004 (XIX of 2004), published in the Punjab Gazette (Extraordinary), dated: 30 June 2004, pp.1989-1992, s.2: it came into force on 1 July 2004.

⁷Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

⁸Substituted for the words “Twelve hundred rupees” by the Punjab Finance Act 2016 (XXXV of 2016), published in the Punjab Gazette (Extraordinary), dated: 29 June 2016, pp. 6083-6092, s.2: it came into force on 1 July 2016. The words “Twelve hundred rupees” were earlier substituted for the words “One thousand rupees” by the Punjab Finance Act 2014 (XVII of 2014), published in the Punjab Gazette (Extraordinary), dated: 26 June 2014, pp.4169-4178, s. 2: it came into force on 1 July 2014.

	Description of Instrument		Proper Stamp-duty
	(c) in any other case Explanation 1.– For the purposes of this Article more persons than one when belonging to the same firm shall be deemed to be one person. Explanation 2.– The term “Registration” includes every operation incidental to registration under the Registration Act, 1908².		one wife or widow and another wife or widow of the same husband, or between father, mother, son, daughter, grandparents, grandchildren or siblings; and (b) Two percent of the value calculated according to the value notified by the District Collector in all other cases.] ³[Note: In case of registration of the instrument, an additional stamp duty of Rs.25/- shall be charged.] ⁴[One hundred] rupees for each person authorized]
49.	⁵ [PROMISSORY NOTE as defined by section 2(22)–		
	(a) when payable on demand –		
	(i) when the amount or value does not exceed Rs. 2,50,000/-		Two hundred rupees
	(ii) when the amount or value exceeds Rs. 2,50,000/- but does not exceed Rs. 5,00,000/-		Three hundred rupees
	(iii) in any other case		Five hundred rupees

¹Substituted for the words “Twelve hundred” by the Punjab Finance Act 2024 (VIII of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 June 2024, pp. 4999-5005, s. 3(f)(ii).

²XVI of 1908.

³Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

⁴ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33.

⁵Substituted by the Punjab Finance Act 2018 (XXX of 2018), published in the Punjab Gazette (Extraordinary), dated: 29 October 2018, pp. 805-818, s. 2: it came into force on 1 November 2018.

	Description of Instrument	Proper Stamp-duty
	(b) when payable otherwise than on demand, including a commercial paper.	One-fiftieth of one percent, that is to say, 0.02% per annum of the amount payable subject to a maximum of one hundred thousand rupees.]
50.	¹ [PROTEST OF BILL OR NOTE , that is to say, any declaration in writing made by a Notary Public, or other person lawfully acting as such, attesting the dishonour of a Bill of Exchange for promissory note.	One hundred rupees.]
51.	PROTEST BY THE MASTER OF A SHIP , that is to say, any declaration of the particulars of her voyage drawn up by him with a view to the adjustment of losses or the calculation of averages, and every declaration in writing made by him against the charterers or the consignees or not loading or un-loading the ship, such declaration is attested or	² [One Hundred] rupees.
	certified by a Notary Public or other person lawfully acting as such. See also NOTE OF PROTEST BY THE MASTER OF A SHIP (No. 44).	
52.	³ [PROXY empowering any person to vote at any one election of the members of a district or local board or of a body of municipal commissioners, or at any one meeting of (a) members of an incorporated company or other body corporate whose stock or funds is or are divided into shares and transferable; (b) a local authority; or (c) proprietors, members or contributors to the funds of any institution.	Fifty rupees.]
53.	⁴ [RECEIPTS as defined by section 2 (23) for any money or other property the amount or value of which exceeds twenty rupees—	
	(a) where such amount does not exceed ten thousand rupees	Ten rupees
	(b) where such amount exceeds ten thousand rupees but does not exceed twenty thousand rupees	Twenty rupees

¹Substituted by the Punjab Finance Act 2018 (XXX of 2018), published in the Punjab Gazette (Extraordinary), dated: 29 October 2018, pp. 805-818, s. 2: it came into force on 1 November 2018.

² Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33. It was earlier substituted for the word "Five" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995. The word "Five" was earlier substituted for the word "Four" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

³Substituted by the Punjab Finance Act 2018 (XXX of 2018), published in the Punjab Gazette (Extraordinary), dated: 29 October 2018, pp. 805-818, s. 2: it came into force on 1 November 2018.

⁴*Ibid.*

	Description of Instrument		Proper Stamp-duty
	(c) where such amount exceeds twenty thousand rupees		Fifty rupees]
	Exemptions		
	Receipts–		
	(a) endorsed on or contained in any instrument duly stamped or any instrument exempted under the proviso to section 3 (instruments executed on behalf of the Government) or any cheque or bill of exchange, payable on demand acknowledging the receipt of the consideration money therein expressed, or the receipt of any principal-money, interest or annuity, or other periodical payment thereby secured;		
	(b) for any payment of money without consideration;		
	(c) for any payment of rent by a cultivator on account of land assessed to Government revenue;		
	(d) for pay or allowances by non-commissioned or petty officers, soldiers, sailors or airmen of the armed forces of Pakistan/Pakistan's military, naval or air forces, when serving in such capacity, or by mounted police-constables;		
	(e) given by holders of family-certificates in cases where the person from whose pay or allowances the sum comprised in the receipt has been assigned as a non-commissioned or petty officer, soldier, sailor or airman, or any of the said forces and serving in such capacity;		
	(f) for pensions or allowances by persons receiving such pensions or allowances in respect of their services as such, non-commissioned or petty officers, soldiers, sailors or airmen, and not serving the State in any other capacity;		
	(g) given by a headman or lambardar for land-revenue or taxes collected by him;		
	(h) given for money or securities for money deposited in the hands of any banker to be accounted for:		
	Provided that the same is not expressed to be received of, or by the hands of, any other than the person to whom the same is to be accounted for:		

	Description of Instrument		Proper Stamp-duty
	Provided also that this exemption shall not extend to receipt or acknowledgment for any sum paid or deposited for, or upon a letter of allotment of a share, or in respect of a call upon any scrip or share of, or in, any incorporated company or other body corporate or such proposed or intended company or body or in respect of a debenture being a marketable security.		
54.	RE-CONVEYANCE OF MORTGAGE PROPERTY—		
	(a) ¹ [* * * * *]		² [* * * * *].
	(b) ³ [* * * * *]		⁴ [One ⁵ [thousand]] rupees.
			⁶ [Note: in case of the registration of the instrument, an additional stamp duty shall be charged equal to the amount of the registration fee paid on the principal mortgage deed.]

¹ Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

² Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33. It was earlier Substituted for the expression "The same duty as on a Bond (No.15) for the amount of such consideration as set forth in the re-conveyance" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

³ Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp,1301-1311 s.33.

⁴Substituted for the word "Fifty" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995. The word "Fifty" was earlier substituted for the word "Thirty" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

⁵Substituted for the word "hundred" by the Punjab Finance Act 2024 (VIII of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 June 2024, pp. 4999-5005, s. 3(g).

⁶Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

¹[55.	RELEASE, that is to say any instrument not being such a release as is provided for by section 23A whereby a person renounces a claim on another person or against any specified property. (a) When executed between spouses or between one wife or widow of the same husband or between father, mother, son, daughter, grandparents, grandchildren, or sibling. (i) In case of immovable property in an urban area. (ii) In case of immovable property in rural area. (b) In any other case (i) In case of immovable property in an urban area. (ii) In case of immovable property in rural area.	²[2] percent of the value of the share of the immovable property over which the claim is renounced. 3 percent of the value of the share of the immovable property over which the claim is renounced. ³[2] percent of the value of the share of the immovable property over which the claim is renounced. 3 percent of the value of the share of the immovable property over which the claim is renounced. Note: In case of registration of the instrument: (a) Rs.500/-, if the amount of consideration does not exceed Rs.500,000/-; and (b) Rs.1000/-, if the amount of consideration exceeds Rs.500,000/-".]
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	Description of Instrument	Proper Stamp-duty
56.	RESPONDENTIA BOND , that is to say, any instrument securing a loan on the cargo laden or to be laden on board a ship and making repayment contingent on the arrival of the cargo at the port of destination.	The same duty as on a Bond (No. 15) for the amount of the loan secured.
	REVOCATION OF ARMY TRUST OR SETTLEMENT.	
	See SETTLEMENT (No. 58), TRUST (No. 64).	
		⁴ [Note: In case of registration of the instrument, an additional stamp duty of Rs.25/- shall be charged.]
57.	SECURITY BOND OR MORTGAGE DEED executed by way of security for the due execution of an office, or to account for money or other property received by virtue thereof or executed in favour of a Court for the due discharge of a contingent liability or executed by a surety to secure the due performance of a contract—	
	(a) when the amount secured does not exceed Rs. 1,000;	⁵ [Thirty rupees].
	(b) in any other case.	⁶ [One hundred] rupees.
	EXEMPTIONS	
	Bond or other instrument, when executed—	
	(a) by any person for the purpose of guaranteeing that the local income derived from private subscriptions to a charitable dispensary or hospital or any other object of public utility shall not be less than a specified sum per mensem;	

¹ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33. It was earlier, substituted by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

² Substituted for the figure “1” by the Punjab Finance Act 2022 (IX of 2022), published in the Punjab Gazette (Extraordinary), dated: 24th June 2022, pp. 6339-6345, s.2.

³ Substituted for the figure “1” by the Punjab Finance Act 2022 (IX of 2022), published in the Punjab Gazette (Extraordinary), dated: 24th June 2022, pp. 6339-6345, s.2.

⁴ Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

⁵ Substituted for “The same duty as on a Bond (No.15) for the amount secured” by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

⁶ *Ibid.*, for the word “Fifty”. The word “Fifty” was earlier substituted for the word “Thirty” by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

	Description of Instrument	Proper Stamp-duty
	(b) under No. 3-A of the rules made by the Provincial Government under section 70 of the Sind Irrigation Act, 1879 ¹ ;	
	(c) executed by persons taking advances under the Land Improvement Loans Act, 1883 ² , or the ³ [Punjab] Agriculturists Loans Act, 1958 ⁴ , or by their sureties, as security for repayment of such advances;	
	(d) executed by servants of the State or their sureties to secure the due execution of an office or the due accounting for money or other property received by virtue thereof.	
		⁵ [Note: In case of registration of the instruments, an additional stamp duty of Rs.25/- shall be charged.]
58.	SETTLEMENT–	
	A-Instrument of (including a deed of dower)–	
	⁶ [(i) Where the settlement is made in favour of legal heirs in respect of agricultural land.	⁷⁻⁸ [[One] percent] of the value of the property.]
	⁹ [(ii)]where the settlement is made for a religious or charitable purpose;	¹ [²⁻³ [[One] percent] of the sum equal to the amount or value of the property settled.

¹Sindh VII of 1879.

²XIX of 1883.

³Substituted by the Punjab Laws (Adaptation) Order, 1974 (P.O. No.1 of 1974), published in the Punjab Gazette (Extraordinary), dated: 20 November 1974, pp.1425-A to 1425-PP, Article 2 and the Schedule: it came into force on 14 August 1973.

⁴West Pakistan Act XVII of 1958.

⁵Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

⁶Inserted by the Punjab Finance Act, 1975 (XL of 1975), published in the Punjab Gazette (Extraordinary), dated: 28 June 1975, pp. 945-A to 945D, s. 3: it came into force on 1 July 1975 .

⁷Substituted for the words "Two percent" by the Punjab Finance Act 2014 (XVII of 2014), published in the Punjab Gazette (Extraordinary), dated: 26 June 2014, pp.4169-4178, s. 2: it came into force

on 1 July 2014. The words "Two percent" were earlier substituted for the words "Two rupees for every one hundred rupees or part thereof" by the Punjab Finance Act, 2004 (XIX of 2004), published in the Punjab Gazette (Extraordinary), dated: 30 June 2004, pp.1989-1992, s.2; it came into force on 1 July 2004. The words "Two rupees" were earlier substituted for the words "One rupee" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

⁸Substituted for the word "Three" by the Punjab Finance Act 2020 (VIII of 2020), published in the Punjab Gazette (Extraordinary), dated: 29 June 2020, pp. 4353-4359, s. 2.

⁹Renumbered by the Punjab Finance Act, 1975 (XL of 1975), published in the Punjab Gazette (Extraordinary), dated: 28 June 1975, pp. 945-A to 945D, s. 3: it came into force on 1 July 1975 .

	Description of Instrument	Proper Stamp-duty
	⁴ [(iii)] in any other case	⁵ [⁶ ⁷ [[One] percent] of the] consideration equal to the amount or value of the property settled: Provided that, where an agreement to settle is stamped with the stamp required for an instrument of settlement, and an instrument of settlement in pursuance of such agreement is subsequently executed, the duty on such instrument shall not exceed ⁸ [one hundred rupees]: Provided further that, where an instrument of settlement contains any provision for the revocation
		of the settlement, the amount or value of the property settled shall, for the purposes of duty, be determined as if no such provisions were contained in the instrument.
	EXEMPTIONS	

¹Substituted for the words "The same duty as on a Bond (No.15) for a" by the Punjab Finance Act, 2004 (XIX of 2004), published in the Punjab Gazette (Extraordinary), dated: 30 June 2004, pp.1989-1992, s.2; it came into force on 1 July 2004.

²Substituted for the words "Two percent" by the Punjab Finance Act 2014 (XVII of 2014), published in the Punjab Gazette (Extraordinary), dated: 26 June 2014, pp.4169-4178, s. 2: it came into force on 1 July 2014.

³Substituted for the word "Three" by the Punjab Finance Act 2020 (VIII of 2020), published in the Punjab Gazette (Extraordinary), dated: 29 June 2020, pp. 4353-4359, s. 2.

⁴Renumbered by the Punjab Finance Act, 1975 (XL of 1975), published in the Punjab Gazette (Extraordinary), dated: 28 June 1975, pp. 945-A to 945D, s. 3: it came into force on 1 July 1975 .

⁵Substituted for the words "The same duty as is leviable on a Conveyance (No.23) for a" by the Punjab Finance Act, 2004 (XIX of 2004), published in the Punjab Gazette (Extraordinary), dated: 30 June 2004, pp.1989-1992, s.2; it came into force on 1 July 2004.

⁶Substituted for the words "Two percent" by the Punjab Finance Act 2014 (XVII of 2014), published in the Punjab Gazette (Extraordinary), dated: 26 June 2014, pp.4169-4178, s. 2: it came into force on 1 July 2014.

⁷Substituted for the word "Three" by the Punjab Finance Act 2020 (VIII of 2020), published in the Punjab Gazette (Extraordinary), dated: 29 June 2020, pp. 4353-4359, s. 2.

⁸Substituted for the words "four rupees" by the Punjab Finance Act, 2004 (XIX of 2004), published in the Punjab Gazette (Extraordinary), dated: 30 June 2004, pp.1989-1992, s.2; it came into force on 1 July 2004.

	Description of Instrument	Proper Stamp-duty
	Deed of dower executed on the occasion of a marriage between Muslims.	
	B-Revocation of–	^{1,2} [[One] percent of the] consideration equal to the amount or value of the property concerned, as set forth in the instrument of Revocation but not exceeding ³ [one hundred rupees].
	See also TRUST (No. 64) .	⁴ [Note: In case of registration of the instruments, an additional stamp duty shall be charged as under: (a) Rs. 500/-, if the amount of consideration does not exceed Rs. 500,000/-; and (b) Rs.1000/-, if the amount of consideration exceeds Rs. 500,000/-.]
59.	SHARE WARRANTS to bearer issued under the Companies Act, 1913 ⁵ .	One and a half times the duty payable on a debenture [No. 27 (b)] for a consideration equal to the nominal amount of the shares specified in the warrant.
	EXEMPTIONS	
	Share warrant when issued by a company in pursuance of the Companies Act, 1913 ⁶ , section 30, to have effect only upon payment, as composition for that duty, to the Collector of Stamp-revenue, of–	

¹Substituted for the words "The same duty as is leviable on a Conveyance (No.23) for a" by the Punjab Finance Act, 2004 (XIX of 2004), published in the Punjab Gazette (Extraordinary), dated: 30 June 2004, pp.1989-1992, s.2; it came into force on 1 July 2004.

²Substituted for the word "Two" by the Punjab Finance Act 2020 (VIII of 2020), published in the Punjab Gazette (Extraordinary), dated: 29 June 2020, pp. 4353-4359, s. 2.

³*Ibid.* for the words "fifty rupees".

⁴Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

⁵VII of 1913, Now the Companies Act, 2017 (XIX of 2017): it repealed the Companies Ordinance, 1984 (XLVII of 1984); the 1984 Ordinance repealed the Companies Act, 1913 (VII of 1913); the 1913 Act repealed the Indian Companies Act, 1882; the 1882 Act repealed the Indian Companies Act, 1866; the 1866 Act repealed the Joint Stock Companies Act, 1857; and, the 1857 Act repealed the Joint Stock Companies Act, 1850 (XLIII of 1850).

⁶*Ibid.*

	Description of Instrument	Proper Stamp-duty
	(a) one and a half per centum of the whole subscribed capital of the company; or	
	(b) if any company which has paid the said duty or composition in full subsequently issues an addition to its subscribed capital—one and a half per centum of the additional capital so issued.	
	SCRIP-See CERTIFICATE (No. 19).	
60.	SHIPPING ORDER for or relating to the conveyance of goods on board of any vessel.	¹ [² [Five] rupees].
61.	SURRENDER OF LEASE—	
	³ [* * * * *]	⁴ [* * * * *]
	⁵ [* * * * *]	⁶ [One ⁷ [thousand]] rupees.
	EXEMPTIONS	
	Surrender of lease, when such lease exempted from duty.	
		⁸ [Note: An additional stamp duty at the rate of 5/8 th of the stamp duty which was paid on the original lease deed.]
62.	TRANSFER (Whether with or without consideration)–	

¹Substituted for the words "Twenty-five paise" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

²Substituted for the word "Two" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995.

³Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33.

⁴Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33.

⁵Omitted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33.

⁶Substituted for the word "Fifty" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995. The word "Fifty" was earlier substituted for the word "Thirty" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

⁷Substituted for the word "hundred" by the Punjab Finance Act 2024 (VIII of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 June 2024, pp. 4999-5005, s. 3(h).

⁸Inserted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

	Description of Instrument	Proper Stamp-duty
	(a) of shares in an incorporated company or other body corporate;	One-fourth of the duty payable on a conveyance (No. 23) for a consideration equal to the value of the share.
	¹ [(b) of Debenture or Participation Term Certificate or Term Finance Certificate or any other instrument of redeemable capital (other than Commercial Paper), whether mortgaged or not, being a transferable security, whether liable	One-tenth of one percent, that is to say, 0.1% of the face value of the instrument.]
	to duty or not except as provided for by section 8; and	
	(c) of any interest secured by a bond, mortgage-deed or policy of insurance—	
	(i) if the duty on such bond, mortgage-deed or policy does not exceed twenty rupees;	The duty with which such bond mortgage-deed or policy of insurance is chargeable.
	(ii) in any other case	² [One hundred] rupees.
	(d) of any property under the Administrator-General's Act, 1913 ³ , section 31;	⁴ [One hundred] rupees.
	(e) of any trust-property without consideration from one trustee to another trustee or from a trustee to a beneficiary.	⁵ [One hundred rupees] or such smaller amount as may be chargeable under clauses (a) to (c) of this Article.
	⁶ [(f) of a promissory note, including a commercial paper, when payable otherwise than on demand.	Nil.]
	EXEMPTIONS Transfers by endorsement—	
	(a) of a bill of exchange, cheque or promissory note;	
	(b) of a bill of lading, delivery order, warrant for goods, or other mercantile document of title to goods;	

¹Substituted by the Punjab Finance Act, 2006 (V of 2006), published in the Punjab Gazette (Extraordinary), dated: 30 June 2006, pp. 5027-5029, s. 3: it came into force on 1 July 2006.

² Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33.

³III of 1913.

⁴ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33. It was earlier substituted for the word "Thirty" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

⁵ Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33.

⁶Inserted by the Punjab Finance Act, 2006 (V of 2006), published in the Punjab Gazette (Extraordinary), dated: 30 June 2006, pp. 5027-5029, s. 3: it came into force on 1 July 2006.

	Description of Instrument		Proper Stamp-duty
	(c) of a policy of insurance; (d) of securities of the ¹ [Federal Government]. See also section 8–		
63.	² [TRANSFER OF LEASE by way of assignment and not by way of under-lease: (i) in case of immovable property in an urban area; and (ii) in any other case.		³ [Two] percent of the amount of consideration for the transfer. Three percent of the amount of consideration for the transfer. Note: In case of registration of the instrument, an additional stamp duty shall be charged as under: (a) Rs. 500/-, if the amount of consideration does not exceed Rs.500,000/-; and (b) Rs.1000/-, if the amount of consideration exceeds Rs.500,000/-
	Exemption: Transfer of any lease exempt from duty.]		

¹Substituted for the words “Central Government” by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), published in the Gazette of Pakistan (Extraordinary), dated: 1 August 1975, pp. 435-467, Article 2 read with the Table of General Adaptations.

²Substituted by the Punjab Finance Act 2017 (XII of 2017), published in the Punjab Gazette (Extraordinary), dated: 16 June 2017, pp. 8235-8250, s. 2: it came into force on 1 July 2017.

³Substituted for the word “One” by the Punjab Finance Act 2022 (IX of 2022), published in the Punjab Gazette (Extraordinary), dated: 24th June 2022, pp. 6339-6345, s.2. It was earlier substituted for the word “five” by the Punjab Finance Act 2020 (VIII of 2020), published in the Punjab Gazette (Extraordinary), dated: 29 June 2020, pp. 4353-4359, s.2.

	Description of Instrument	Proper Stamp-duty
¹ [63-A	²[(i) An instrument of transfer of a right or interest relating to an immovable property or an acknowledgement of such transfer, by a development authority, housing authority or a statutory body. Explanation-I.– In cases where allotment is to be made consequent upon payment of the installments or transfer of a right or interest is made by original allottee before the payment of the last installment, stamp duty shall be charged at the time of transfer whichever is earlier. Explanation-II.– Transfer or allotment made through auction by a development authority is not entitled to an exemption from the payment of stamp duty.	
	(ii) An instrument of transfer of right or interest relating to an immovable property or an acknowledgment of such transfer by a cooperative housing society. Explanation-I.– First time allotment is exempted from the payment of stamp duty. However, transfer/ allotment made through open auction is not entitled to the exemption from the payment of stamp duty. Explanation-II.– Transfer of a right or interest includes transfer made through electronic form and open transfer letter.”]	³ [⁴ [Two] percent of the value of the property.]
64.	TRUST– A. Declaration of—of, or concerning any property	The same duty as on a Bond (No. 15) for a sum

¹Inserted by the Punjab Finance Act 2008 (I of 2008), published in the Punjab Gazette (Extraordinary), dated: 27 June 2008, pp. 4033-4035, s. 3: it came into force on 1 July 2008. It was earlier deleted by the Punjab Finance Ordinance, 2000 (III of 2000), published in the Punjab Gazette (Extraordinary), dated: 30 June 2000, pp. 587-595, s. 2: it came into force on 1 July 2000. It was earlier added by the Punjab Finance Act 1998 (VII of 1998), published in the Punjab Gazette (Extraordinary), dated: 30 June 1998, pp.1577-1580, s. 2: it came into force on 1 July 1998.

² Substituted by the Stamp (Amendment) Act 2021 (XXIX of 2021), published in the Punjab Gazette (Extraordinary), dated: 01 October 2021, pp.1301-1311 s.33.

³Substituted by the Punjab Finance Act 2020 (VIII of 2020), published in the Punjab Gazette (Extraordinary), dated: 29 June 2020, pp. 4353-4359, s. 2.

⁴ Substituted for the word “One” by the Punjab Finance Act 2022 (IX of 2022), published in the Punjab Gazette (Extraordinary), dated: 24th June 2022, pp. 6339-6345, s.2.

	Description of Instrument	Proper Stamp-duty
	when made by any writing not being a WILL.	equal to the amount or value of the property concerned as set forth in the instrument but not exceeding ¹ [Two hundred rupees].
	B. Revocation of—of, or concerning any property when made by any instrument other than a WILL.	The same duty as on a Bond (No. 15) for a sum equal to the amount or value of the property concerned as set forth in the instrument but not exceeding ² [Two hundred rupees].
	See also SETTLEMENT (No. 58) .	
	VALUATION . See APPRAISEMENT (No. 8) .	
65.	WARRANT FOR GOODS , that is to say, any instrument evidencing the title of any person therein named, or his assigns, or the holder thereof, to the property in any goods lying in or upon any dock, warehouse or wharf, such instrument being signed or certified by or on behalf of the person in whose custody such goods may be.	³ [Five] rupees.

¹Substituted for the words "One hundred rupees" by the Punjab Finance Act 2014 (XVII of 2014), published in the Punjab Gazette (Extraordinary), dated: 26 June 2014, pp.4169-4178, s. 2: it came into force on 1 July 2014. The words "One hundred" was earlier substituted for the word "Fifty" by the Punjab Finance Act 1995 (VI of 1995), published in the Punjab Gazette (Extraordinary), dated: 27 June 1995, pp. 103-112, s. 2: it came into force on 1 July 1995. The word "fifty" was earlier substituted for the word "thirty" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

²*Ibid.*

³Substituted for the word "Two" by the Punjab Finance Act, 1990 (I of 1990), published in the Punjab Gazette (Extraordinary), dated: 28 June 1990, pp. 1165-A to 1165-G, s. 2: it came into force on 1 July 1990.

¹[**SCHEDULE II.**–
Enactments repealed]

¹Repealed by the Repealing and Amending Act, 1914 (X of 1914), published in the Gazette of India, Part IV, dated: 21 March 1914, pp. 47-59, s. 3 read with the Second Schedule.